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~~SECOND~~THIRD AMENDED AND RESTATED

LIMITED PARTNERSHIP AGREEMENT

OF

KDC MEDIA FUND , L.P.

(An Israeli Limited Partnership)

Dated ~~December 18, 2019~~June 30, 2021

THE LIMITED PARTNERSHIP INTERESTS REPRESENTED BY THIS ~~SECOND~~THIRD AMENDED AND RESTATED LIMITED PARTNERSHIP AGREEMENT HAVE NOT BEEN REGISTERED UNDER THE SECURITIES LAWS OF ANY JURISDICTION, ARE SUBJECT TO RESTRICTIONS ON TRANSFERABILITY AND RESALE AND MAY NOT BE TRANSFERRED OR RESOLD EXCEPT AS PERMITTED UNDER THE APPLICABLE SECURITIES LAWS. LIMITED PARTNERS SHOULD BE AWARE THAT THEY MAY BE REQUIRED TO BEAR THE RISKS OF THIS INVESTMENT FOR AN INDEFINITE PERIOD OF TIME.

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12.2.3 Notwithstanding the above, a member of the Advisory Committee and a Limited Partner who may have designated such member shall not be so indemnified only with respect to matters as to which they shall have been finally adjudicated in any such action, suit or proceeding to have acted with fraud or intentional misconduct. Advance Payment of Expenses. *47*
12.2.4 Insurance. *47*
12.2.5 Successors. *48*
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KDC MEDIA FUND, L.P.
~~SECOND~~THIRD AMENDED AND RESTATED
LIMITED PARTNERSHIP AGREEMENT

THIS ~~SECOND~~THIRD AMENDED AND RESTATED LIMITED PARTNERSHIP AGREEMENT, is dated of the ~~16~~30th day of ~~December, 2019~~June, 2021 (as may be amended or revised from time to time, this "**Agreement**"), by and among KDCP GP KDC Media Fund Ltd, a company incorporated under the laws of the state of Israel, as the sole general partner of the Partnership (the "**General Partner**") and those Persons who execute a counterpart of this Agreement as limited partners or are subsequently admitted as limited partners in accordance with its terms (the "**Limited Partners**"). The General Partner and the Limited Partners are sometimes referred to herein collectively as the "**Partners**."

WHEREAS, by an agreement dated March 24, 2016 by and between the General Partner and Keshet Broadcasting Ltd. (the "**Initial Agreement**") and the registration of the Partnership as a limited partnership under the laws of the State of Israel on April 4, 2016 the Partnership was established;

WHEREAS, on May 31, 2016 the Initial Agreement was replaced in its entirety by the Amended and Restated Limited Partnership Agreement of the same date (the "**Amended Agreement**"); ~~and~~

WHEREAS, on December 18, 2019 the Amended Agreement was replaced in its entirety by the Second Amended and Restated Limited Partnership Agreement of the same date (the "**Second Amended Agreement**");

WHEREAS, on December 15, 2020, the Second Amended Agreement was amended, such the the Final Closing Date was extended until June 30, 2021 (the "**Amendment**"); and

WHEREAS, the parties hereto wish to amend and restate the Second Amended Agreement~~,~~ (and the Amendment thereto), by its entire deletion and replacement with this Agreement as hereinafter set forth:

NOW, THEREFORE, the parties hereto hereby agree as follows:

ARTICLE 1 - DEFINITIONS

1.1 DEFINITIONS.

Capitalized terms used herein and not otherwise defined have the meanings assigned to them in **Appendix I** hereto.

ARTICLE 2 - ORGANIZATION; POWERS

2.1 CONTINUATION OF LIMITED PARTNERSHIP.

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The Partners hereby agree to continue the Partnership subject to the terms of this Agreement and pursuant to and in accordance with the Partnership Ordinance [New Version], 5375 - 1975 of the State of Israel, as amended from time to time (the "**Ordinance**"). The Second Amended Agreement is hereby amended and restated in its entirety and replaced by this Agreement. In the event of any inconsistency between any term or condition contained in this Agreement and any non-mandatory provision of the Ordinance, the terms and conditions contained in this Agreement shall govern. Without derogating from the foregoing, to the fullest extent permitted by law, Sections 38-55 of the Ordinance shall not apply to the Partnership.

2.2 NAME; OFFICES.

The name of the Partnership is "KDC Media Fund, L.P.". The Partnership shall have the exclusive right to use such name as long as the Partnership continues. The name of the Partnership may be changed at any time by the General Partner without the consent or approval of any of the Limited Partners, provided that the General Partner shall give prompt notice to the Limited Partners of any such change. The principal offices of the Partnership shall be located at 12 Raul Wallenberg Street, Ramat Hachayal, Tel Aviv, Israel. The General Partner may change the location of the principal office of the Partnership to such other location(s), as the General Partner may specify from time to time in a written notice to the other Partners. The General Partner, in its reasonable discretion, may cause the Partnership to open additional offices.

2.3 PURPOSE; POWERS.

The principal purpose of the Partnership is to generate returns primarily through (i) making investments (by way of investing in equity, equity-related and debt securities, including securities convertible into, exercisable or exchangeable for equity securities) in various verticals of media, including content, gaming, ad tech, dual screen, e-commerce, video, mar tech, mobile and broadcasting Israeli and Israeli Related start-up corporations; (ii) managing, supervising and disposing of the investments mentioned in subsection (i); and (iii) engaging in any other activities incidental or ancillary thereto as the General Partner may deem necessary or advisable (the "**Investment Objective**" and investments so made by the Partnership, the "**Investments**"). Subject to the provisions of this Agreement, the Partnership may engage in any activity that is lawful, and shall have all of the powers available to a limited partnership organized under the Ordinance.

As of the Initial Closing Date and until the date hereof, the Partnership consummated several Investments, including follow-on investments, as fully detailed in **Appendix II** hereto (the "**Existing Investments**").

ARTICLE 3 - PARTNERS

3.1 LIST OF PARTNERS AND SUBSCRIPTIONS.

3.1.1 List of Partners

The name, address, electronic mail address and Subscription of each Partner are set forth in the List of Partners. The General Partner shall cause the List of Partners to be revised, without the necessity of obtaining the consent of any other Partner, to reflect any changes in the identity, addresses, electronic mail addresses or Subscriptions of the Partners occurring pursuant to the terms of this Agreement. Each Partner shall promptly provide the Partnership with the information required to be set forth for such Partner on the List of Partners and shall thereafter promptly notify the Partnership of any change to such information.

3.1.2 Minimum Subscriptions

Other than upon grant of a waiver by the General Partner (which waiver may be granted or withheld, in the sole and absolute discretion of the General Partner), the minimum Subscription for each Limited Partner is US$ 500,000.

3.2 STATUS OF LIMITED PARTNERS.

3.2.1 Limited Liability.

No Limited Partner, in its capacity as such, shall be liable for the debts and obligations of the Partnership so long as such Limited Partner does not take part in the conduct of the business of the Partnership; *provided*, *however*, that each Limited Partner shall be required to pay to the Partnership (a) any unpaid Contributions that such Limited Partner has agreed to make to the Partnership on account of its Subscription pursuant to Article 6; (b) the amount of any distribution that such Limited Partner may be required to return to the Partnership pursuant to this Agreement and/or the Ordinace; and (c) the unpaid balance of any other payments that such Limited Partner expressly is required to make to the Partnership pursuant to this Agreement, including, without limitation, under 6.2.1, or pursuant to such Limited Partner's subscription agreement, deed of adherence, accession agreement, transfer agreement, or other agreement pursuant to which such Limited Partner agreed to acquire a limited partner interest in the Partnership and to become a party to this Agreement (any such agreement, a "**Subscription Agreement**").

3.2.2 Effect of Death, Dissolution or Bankruptcy.

Upon the death, incompetence, bankruptcy, insolvency, liquidation or dissolution of a Limited Partner, the rights and obligations of such Limited Partner under this Agreement shall inure to the benefit of, and shall be binding upon, such Limited Partner's successor(s), estate or legal representative, and each such Person shall be treated as an assignee of such Limited Partner's interest for purposes of Article 11 until such time as such Person may be admitted as a Partner pursuant to that Article.

3.2.3 No Control of Partnership.

Except as otherwise provided herein or by virtue of the Ordinance, no Limited Partner shall have the right or power to: (a) withdraw or reduce its Contribution to the capital of the Partnership; (b) cause the winding up and dissolution of the Partnership; or (c) demand or receive property in return

for its Contributions. No Limited Partner, in its capacity as such, shall take any part in the conduct of the business of the Partnership, undertake any transactions on behalf of the Partnership, or have any power to sign for or otherwise to bind the Partnership.

3.3 ADDITIONAL LIMITED PARTNERS.

3.3.1 Additional Subscriptions before Final Closing Date.

Subject to the provisions of this Agreement, until the Final Closing Date, the General Partner is authorized, but not obligated, to admit to the Partnership one or more additional Limited Partners (each, an "**Additional Limited Partner**") and to accept additional Subscriptions from existing Limited Partners, who shall be deemed to be Additional Limited Partners solely with respect to their additional Subscriptions. Additional Subscriptions may be accepted and Additional Limited Partners may be admitted to the Partnership pursuant to this 3.3.1 according to the following terms:

(a) Each Additional Limited Partner shall contribute, on or immedietly after the date of its admission as an Additional Limited Partner: (i) such amount of its Subscription as determined by the General Partner, (ii) an interest-equivalent amount on its pro rata portion (calculated based on its Subscription amount out of the total Subscriptions of the Partnership) in the aggregate amount of Contributions made to the Partnership (including by the Initial Limited Partners) prior to its admission to the Partnership, computed at a rate of 1.5% per annum for the period from the due dates on which the other Partners were required to make each of their earlier Contributions until the date of the payment of such interest-equivalent amount, *provided that* the General Partner may, in its sole and absolute discretion, waive such interest-equivalent amount, or any part thereof, or make equitable adjustments to such interest-equivalent amount as it deems appropriate, and (iii) if its admission is after the Second Closing Date, also the amount of Management Fee which would have been payable by it had its Subscription (or with respect to an additional Subscription by an existing Limited Partner, its additional Subscription) been in effect on the Second Closing Date.

(b) The amounts contributed by an Additional Limited Partner pursuant to 3.3.1(a)(iii) and any interest payments thereon shall be paid as Management Fees to the General Partner. Any other interest payments in accordance with 3.3.1(a)(ii) shall be distributed to or allocated to the Capital Accounts of the then previously admitted Partners in proportion to their Sharing Percentage prior to the admission of such Additional Limited Partner (*provided* however that such distributed amounts shall not be treated as a distribution for purposes of this Agreement).

(c) The General Partner may make all appropriate adjustments, including to the amount of the Partners' respective Contributions, Capital Accounts, Sharing

Percentages and any other items that are adjusted for capital drawdowns, so that the amounts of all such items, to the maximum extent possible, reflect the provisions of 3.3.1(a).

3.3.2 Accession to Agreement.

Each Person who is admitted as an Additional Limited Partner or substituted Limited Partner pursuant to this Agreement shall accede to this Agreement by executing (through a power of attorney or otherwise) a counterpart signature page to this Agreement or such other document deemed sufficient by the General Partner providing for such admission, which shall be deemed for all purposes to constitute an amendment to this Agreement solely for providing for such admission but shall not require the consent or approval of any other Partner. The General Partner shall make any necessary filings with the appropriate governmental authorities and take such actions as are necessary under applicable law to effectuate such admission.

3.3.3 Anti-Money Laundering Provisions.

The Limited Partners acknowledge that the Partnership, the General Partner and its Affiliates may be subject to certain anti-money laundering laws and related pronouncements and may otherwise be prohibited from engaging in transactions with, or providing services to or receipt funds from, certain foreign countries, territories, entities and individuals, including without limitation, specficially designated nationals, specficially designated parties subject to government sanctions and embargo programs. In furtherance of the foregoing:

(a) Each Limited Partner hereby agrees to ensure that:

(1) None of the monies that such Limited Partner will Contribute or pay to the Partnership are derived from, or related to, any activity that is deemed criminal under the laws of any applicable jurisdiction; and

(2) No Contribution or payment by such Limited Partner to the Partnership, to the extent that such Contribution or payment is within such Limited Partner's control, and no distribution to such Limited Partner (assuming such distribution is made in accordance with instructions provided to the General Partner by such Limited Partner) shall cause the Partnership, the General Partner or the Managing Partner to be in violation of the Israeli Money Laundering Prohibition Law of 2000, the Israeli Combat with Criminal Organizations Law of 2003, the Israeli Terror Financing Prohibition Law of 2005, the Bank of Israel Law of 2010, The U.S. Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001 or any other anti-money laundering, bank secrecy or other similar laws or regulations of Israel or of any other applicable jurisdiction, in each case as amended and any successor statute thereto and including all regulations promulgated thereunder (collectively, the "**Anti-Money Laundering Laws**").

(b) Each Limited Partner: (1) shall promptly notify the General Partner if at any time, to its knowledge, such Limited Partner is not in compliance with 3.3.3(a)(1) or (2); (2) shall provide the General Partner, promptly upon receipt of the General Partner's written request therefor, with any additional information regarding such Limited Partner and/or its beneficial owner(s) or beneficieries that the General Partner deems necessary or advisable in order to ensure compliance of the Partnership, the General Partner and/or any Affilaite thereof with the Anti-Money Laundering Laws or all applicable laws, regulations and administrative pronouncements concerning other criminal activities; and (3) understands and agrees that if, at any time, the requirements of 3.3.3(a) are not satisfied, or if otherwise required by the Anti-Money Laundering Laws or any applicable law or regulation related to other criminal activities, the General Partner may take appropriate actions to ensure that the Partnership and the General Partner are in compliance with all such applicable laws, regulations and pronouncements.

(c) Each Limited Partner acknowledges and agrees that (1) the Partnership or General Partner may release any information in its possession regarding a Limited Partner and, if applicable, any of its beneficial owners, to governmental authorities and/or any bank or other financial institution and/or any service providers and/or Portfolio Companies, on an "as needed" basis and if the General Partner, in its sole discretion, determines that releasing such information is in the best interest of the Partnership in light of any regulations or administrative pronouncements promulgated under applicable laws or required or advisable for the Partnership's operations, and (2) the General Partner, without the consent of any Limited Partner and notwithstanding any other provision of this Agreement, may amend any provision of this Agreement in order to effectuate the intent of this 3.3.3.

3.4 MANAGEMENT AND CONTROL OF PARTNERSHIP.

3.4.1 Management by General Partner.

The management, policies, control and conduct of the business of the Partnership shall be vested exclusively in the General Partner.

3.4.2 Powers of General Partner.

Except as otherwise explicitly provided herein, the General Partner shall have the power on behalf and in the name of the Partnership to implement the objectives of the Partnership and to exercise any rights and powers the Partnership may possess, including, without limitation, the power to cause the Partnership to make any elections available to the Partnership under applicable tax or other laws and to take any actions relating to taxes. No Person, in dealing with the General Partner, shall be required to determine the General Partner's authority to make any commitment or engage

in any undertaking on behalf of the Partnership, or to determine any fact or circumstance bearing upon the existence of the authority of the General Partner.

3.4.3 Investment Committee.

The General Partner will establish an investment committee, which shall make all decisions concerning investments of the Partnership, including without limitation decisions regarding acquisitions and dispositions of Investments ("**Investment Committee**"). The General Partner will appoint and remove the members of the Investment Committee in its sole and absolute discretion. The initial members of the Investment Committee will include representatives of Keshet Broadcasting Ltd., dcpg investco, LLC, Mivtach Shamir Holdings Ltd. and the Managing Partner. The General Partner shall act in compliance with the decisions adopted by the Investment Committee.

3.5 TIME COMMITMENTS OF GENERAL PARTNER AND MANAGING PARTNER; ALLOCATION OF INVESTMENT OPPORTUNITIES; OTHER ACTIVITIES ; CONFLICTS OF INTEREST.

3.5.1 Obligation to Devote Business Time to the Partnership.

Throughout the Commitment Period, the Managing Partner will devote a substantial majority of his business time to the management of the General Partner, the Fund and any Related Entity.

Thereafter, the General Partner and the Managing Partner shall devote such business time to the Fund as may be reasonably necessary to manage its affairs and activities.

3.5.2 Allocation of Investment Opportunities.

Throughout the Commitment Period, the General Partner and the Managing Partner will make available to the Partnership all investment opportunities identified by them that may reasonably be suitable for the Partnership in their discretion, in light of the Partnership's investment restrictions, available capital and such other relevant factors, other than follow-on investments in assets which were acquired by them prior to the Initial Closing Date.

3.5.3 Other Activities of Partners.

Subject to 3.5.2 above and the other provisions of this Agreement (including but not limited to 3.5.4 below), any Partner and its respective partners, members, stockholders, officers, directors, managers, trustees, employees, agents and Affiliates may invest, participate, or engage in (for their own accounts or for the accounts of others), or may possess an interest in, other financial ventures, and investment, professional, civic and political activities of every kind, nature and description, independently or with others, including but not limited to management of other investment vehicles; investment in, financing, acquisition or disposition of securities; investment and management counseling; providing brokerage and investment banking services; or serving as officers, directors, managers, consultants, advisers or agents of other Persons, partners of any partnership, members of any limited liability company or trustees of any trust (and may receive

fees, commissions, remuneration or reimbursement of expenses in connection with these activities), whether or not such activities may conflict with any interest of the Partnership or any of the Partners. Without derogating from the forgoing, the General Partner, the Management Company (if exists), the Managing Partner and members of the Investment Committee shall be permitted to receive fees, commissions and other compensation from any Person, other than the Partnership, including without limitation, director's fees, consulting fees, commitment fees, investment banking fees, transaction fees, monitoring fees, break-up fees and success fees or other remuneration (including any options, warrants or other equity securities and reimbursement of expenses) for services rendered by such Persons. Subject to 5.3.2, neither the Partnership nor any Partner shall have any rights, solely by virtue of this Agreement, in or to any activities permitted by this 3.5.3 or to any fees, income, profits or goodwill derived from such activities or any other fees, commissions and other compensation permitted by this 3.5.3.

3.5.4 Conflicts of Interest

In any case where there is, or may be, a conflict of interest between the General Partner, the Management Company and/or the Managing Partner on the one hand and the Partnership on the other hand, the General Partner shall address such a conflict with the Advisory Committee and may present a solution, after considering the relative interests of each party (including its own interest, the interest of the Partnership and the interest of any other Person) and any customary or accepted industry practices and generally accepted accounting practices. If such solution presented by the General Partner is approved by the Advisory Committee it shall be binding on the Partnership and the General Partner, unless the General Partner, the Management Company and/or the Managing Partner resolves to withdraw from the transaction / action which is the subject of the conflict of interest.

(a) Without derogating from the generality of 3.5.4(a) above, without the approval of the Advisory Committee: (i) the Partnership will neither sell an Investment to nor purchase a Portfolio Company from the General Partner, the Managing Partner or any Affiliates thereof, and shall not make an initial investment in an asset which the General Partner, the Managing Partner or any Affiliate thereof manage, control or have economic interest in; *provided, however*, that the foregoing restriction shall not apply to a proposed investment in any entity which, at the time of the proposed investment, is an existing Portfolio Company or is an Affiliate thereof, and (ii) the General Partner, the Managing Partner or any Affiliate thereof shall not invest in a Portfolio Company, *provided, however*, that the foregoing restriction in this 3.5.4 shall not apply to (1) purchases of securities in any Portfolio Company that are traded on a Public Securities Market, (2) purchases of securities pursuant to the exercise of options or warrants received in connection with the performance of services, (3) co-investments with the Partnership, (4) follow-on investments in assets which were

acquired by them prior to the Initial Closing Date, or (5) an investment by a Successor Fund.

3.6 SUCCESSOR FUND; OTHER INVESTMENT ENTITIES

3.6.1 Successor Fund.

Without the approval of the Advisory Committee and subject to 3.5.1 and 3.5.2 above, the General Partner and/or the Managing Partner will not begin investing through another investment fund with an investment objective substantially the same as the Partnership's Investment Objective (a "**Successor Fund**"), prior to the expiration of the Commitment Period; *provided*, *however*, that this limitation shall not apply to any Alternative Investment Vehicle, Parallel Fund, Feeder Fund, an Investment Subsidiary, an investment vehicle organized for co-investments of the Partnership or the formation of or invovlment in other funds whose primary investment objective is different from the Fund's Investment Objective. Neither the Partnership nor any Partner shall, solely by reason of this Agreement, have any right, title or interest in or to any Successor Fund.

3.6.2 Feeder Funds.

The General Partner shall be permitted to organize one or more investment vehicles (each, a "**Feeder Fund**") in order to facilitate investments in the Partnership and/or in any Parallel Funds by Persons wishing to make indirect investments in the Partnership or such Parallel Funds, as the case may be. The governing documents of a Feeder Fund will be substantially the same as this Agreement, except to the extent necessary to address the tax, legal, regulatory or similar issues of the investors in a Feeder Fund.

3.6.3 Parallel Fund.

(a) Notwithstanding anything in this Agreement to the contrary, the General Partner may form one or more limited partnerships or other investment vehicles or investment advisory programs or accounts to invest in parallel with the Partnership (each, a "**Parallel Fund**") in order to comply with securities laws or to address tax, legal, regulatory or other issues of investors in such entity or program. The governing documents of each Parallel Fund will be substantially the same as this Agreement, except to the extent necessary to address the tax, legal, regulatory or other issues of the investors in such entity or program. The Partnership, any Feeder Fund and any Parallel Fund, if organized, are sometimes collectively referred to herein as the "**Fund**." The Limited Partners of the Partnership and the limited partners or equivalent non-manager participants in any other Feeder Fund or Parallel Fund are sometimes collectively referred to herein as the "**Fund Investors**".

(b) Except (a) where restricted or prohibited by law, rule, regulation or other applicable restriction, or (b) where the potential returns to investors in the Partnership or a Parallel Fund would be unattractive due to tax, legal,

regulatory or other considerations, a Parallel Fund shall invest in every Investment made by the Partnership (other than Temporary Investments) at the same time and on substantially the same terms as the Partnership. Subject to the foregoing, investments shall be allocated between and among the Partnership and any Parallel Funds in proportion to the capital of each entity available for investment, to the extent practicable. The Partnership and any Parallel Funds shall dispose of their investments at the same time, on substantially the same terms, and in the same relative amounts, to the extent practicable. The Partnership and any Parallel Fund shall share common fees and expenses related to investments in proportion to the capital invested by each entity in such Portfolio Company, to the extent practicable.

3.6.4 Allocation of Investments and Expenses Among Funds.

If, upon subsequent closings of the Partnership and the Parallel Funds (if any), there is a change in the ratios of the aggregate subscriptions made to each such fund out of the Fund Subscriptions, then the General Partner may (a) adjust the allocation of existing Portfolio Companies between and among such funds, including by transferring a portion of investments from one fund to another, (b) adjust the relative amounts paid by such funds in respect of expenses, and (c) adjust such other provisions of this Agreement, to reflect as nearly as practicable the situation that would have existed if the respective aggregate capital commitments made to each fund had always been in the same relative proportions as those in effect after the change in the ratio of capital commitments.

3.6.5 Alternative Investment Vehicles and Investment Subsidieries.

(a) Notwithstanding anything in this Agreement to the contrary, and in addition to the General Partner's authority to form a Parallel Fund and a Feeder Fund, if the General Partner determines in good faith that for legal, tax, regulatory, accounting or other similar reasons it is desirable that an investment be made utilizing an alternative investment structure, the General Partner shall be permitted to structure the making of all or any portion of such investment outside of the Partnership, by requiring any Partner or Partners to, and such Partner or Partners shall, make such investment either directly or indirectly in, and become a limited partner, member, stockholder or other equity owner of, one or more partnerships, limited liability companies, corporations or other vehicles (other than the Partnership) (each, an "**Alternative Investment Vehicle**") (i) of which the General Partner, an affiliate of the General Partner or one or more of their respective partners, members, managers, directors or officers shall serve as general partner, manager or in a similar capacity, and (ii) which shall invest on a parallel basis with, or in lieu of, the Partnership, as the case may be. Additionally, the General Partner shall be permitted to form more than one Alternative Investment Vehicle for the making of a single investment and may require that different Partners invest in different Alternative Investment Vehicles as the General

Partner determines to be necessary or advisable for legal, tax, regulatory, accounting or other similar reasons. Nothing in this 3.6.5 shall restrict or apply to the formation of, or restrict the operation of, any Parallel Fund, or any Feeder Fund.

(b) The Limited Partners and the General Partner (or its Affiliate), to the extent of their investment participation in an Alternative Investment Vehicle, may be required to make Contributions directly to such Alternative Investment Vehicle to the same extent, for the same purposes and on substantially the same terms and conditions as Partners are required to make Contributions to the Partnership, and such Contributions shall reduce the unfunded Subscription of each Partner to the same extent that it would be reduced if made to the Partnership. The organizational documents of any such Alternative Investment Vehicle may be executed on behalf of Limited Partners investing therein by the General Partner pursuant to 14.8.1.

(c) The provisions of this 3.6.5 may be effected by initially forming an Alternative Investment Vehicle, in whole or in part, as an investment of the Partnership, and then distributing the interests in such investment as a special distribution not otherwise subject to the terms of this Agreement to such Partners, and in such amounts, as is necessary or desirable in order to effectuate the purposes of this 3.6.5, as determined by the General Partner.

(d) The Partnership and each Alternative Investment Vehicle shall maintain separate books of account and the Partnership shall not commingle its assets and liabilities with those of any Alternative Investment Vehicle. All items of income, gain, loss and deduction of the Partnership shall be allocated to the Partners, all distributions by the Partnership shall be made to the Partners and all returns of distributions by the Partners shall be made to the Partnership. All items of income, gain, loss and deduction of any Alternative Investment Vehicle shall be allocated to the partners or members of such Alternative Investment Vehicle, all distributions by any Alternative Investment Vehicle shall be made to the partners or other members of such Alternative Investment Vehicle and all returns of distributions by the partners or members of any Alternative Investment Vehicle shall be made to such Alternative Investment Vehicle. Subject to the foregoing but notwithstanding any other provision in this Agreement to the contrary, the economic provisions of this Agreement and the partnership or similar agreement or instrument governing such Alternative Investment Vehicle are intended to be, and hereby shall be, construed in all material respects and effected in such a manner as to cause each Limited Partner individually, and the General Partner and its affiliated entities that may be utilized to effectuate this 3.6.5 collectively, to receive the same aggregate allocations and distributions, at substantially the same times, from the Partnership and the Alternative Investment Vehicles as they would have been entitled to

receive if (i) all capital contributions to the Alternative Investment Vehicle were made to, and all distributions from the Alternative Investment Vehicle were made by, the Partnership, (ii) all Alternative Investment Vehicle investments in its portfolio companies and Alternative Investment Vehicle short-term investments were initially acquired by, and were at all times held by, the Partnership, and (iii) all Alternative Investment Vehicle expenses (including management fees incurred or paid by any Alternative Investment Vehicle) were incurred and paid solely by the Partnership; *provided, however*, that the allocations and distributions may differ as a result of taxes and other expenses paid or payable by the Alternative Investment Vehicle (or any entity included in such vehicle), and, to the extent practicable, such taxes and other expenses shall be borne by the Limited Partners for whose benefit the Alternative Investment Vehicle was established. Without limiting the foregoing, there shall be no duplication of management fees, recalls of distributions or general partner return obligations among the Partnership and the Alternative Investment Vehicles. In the event that a Limited Partner Transfers any portion of its interest hereunder in the absence of a corresponding Transfer of a proportionately equivalent interest of such Limited Partner in each Alternative Investment Vehicle in which it is a limited partner or similar investor, or if any limited partner or similar investor in any Alternative Investment Vehicle Transfers any portion of its interest in any such entity without a corresponding Transfer of a proportionately equivalent interest hereunder, such corresponding transferred and retained interest shall continue to be subject to the provisions of this 3.6.5, unless otherwise determined by the General Partner in its sole discretion.

(e) Any Limited Partner that defaults on its obligations to any Alternative Investment Vehicle in which it invests and becomes a "defaulting partner," "defaulting member" or similar defaulting Person or entity under an agreement or instrument governing such Alternative Investment Vehicle (after giving effect to any applicable cure periods thereunder) shall also be a Defaulting Partner hereunder and any Limited Partner that becomes a Defaulting Partner of the Partnership shall also be a "defaulting partner," "defaulting member" or similar defaulting Person under an agreement or instrument governing such Alternative Investment Vehicle.

(f) Any Alternative Investment Vehicle will provide for the limited liability of the Limited Partners. Further, the economic terms of each Alternative Investment Vehicle shall be substantially the same in all material respects as those of the Partnership; provided that such non-economic terms and conditions may vary to address the legal, tax, regulatory or other similar reasons that led to the formation of such Alternative Investment Vehicle.

(g) Investments made by Alternative Investment Vehicles alongside (rather than in lieu of) the Partnership shall be made and disposed of at substantially the same time and on substantially similar terms as the Partnership, subject in each case to any legal, tax, regulatory, accounting or other similar considerations that may limit the timing, amount or type of such investment or disposition.

(h) If the General Partner determines in good faith that for legal, tax, regulatory, accounting or other similar reasons, or to facilitate the acquisition or management of Portfolio Companies, it is desirable that an investment be made by the Partnership through one or more partnerships, corporations, trusts or other entities all or substantially all of the beneficial interests in which are held directly or indirectly by the Partnership (an "**Investment Subsidiary**"), the General Partner shall be authorized to establish such Investment Subsidiary and cause the Partnership to utilize it for purposes of making one or more Portfolio Company investments. In connection with such use of an Investment Subsidiary, the General Partner shall also be authorized, but not required, to adjust in good faith the provisions of this Agreement relating to (i) the allocation of net gain, net loss, Partnership Expenses and other similar items and (ii) distributions, to minimize the tax and other costs associated with the use of the Investment Subsidiary and to cause such costs to be borne directly or indirectly by the Limited Partner(s) for whose benefit the Investment Subsidiary was established.

3.6.6 Co-Investment Opportunities and Exercise of Preemption Rights

The General Partner may (but shall not be obligated to), in its sole discretion, offer to one or more Limited Partners or other Persons the opportunity to co-invest in certain investment opportunities with the Partnership or any Alternative Investment Vehicle or Investment Subsidiary and/or to exercise preemption rights granted to the Partnership or to any Investment Subsidiary. The General Partner or its designated Affiliate shall be entitled to receive management fees, carried interest or other compensation in connection with any co-investment or exercise of preemption rights. The General Partner may organize one or more limited partnerships or other investment vehicles to facilitate such co-investment opportunities and/or preemption opportunities. Each Limited Partner, if any, participating in a co-investment opportunity and/or exercising a preemption right shall (i) bear its proportionate share of the expenses associated with the making of such co-investment and/or exercising a preemption right, including any expenses associated with the organization and operation of any such partnership or vehicle and (ii) be solely responsible for its decision to participate in such co-investment opportunity and/or preemption opportunity and the General Partner shall not be deemed to have advised such Limited Partner with respect to such co-investment opportunity and/or preemption right.

3.7 ADVISORY COMMITTEE.

3.7.1 Appointment; Removal.

The Partnership will form a committee (the "**Advisory Committee**"), which shall consist exclusively of Fund Investors (or designated representatives thereof) who are not the Managing Partner, the General Partner, the Management Company or their respective Affiliates, who shall be appointed by the General Partner and may be removed or replaced by the General Partner. If one or more Parallel Funds or Feeder Funds have been formed, then the same Advisory Committee shall serve as the Advisory Committee for the Partnership and such Parallel Fund(s) and Feeder Fund(s) and, to the extent feasible and appropriate, shall make decisions with respect to all such entities on a joint and consistent basis.

3.7.2 Duties.

The duties of the Advisory Committee shall be to:

(a) Review and advise the General Partner regarding potential conflicts of interest submitted to them by the General Partner or regarding such other matters as the General Partner may determine; and

(b) Undertake such other duties as are required by this Agreement or as reasonably requested by the General Partner.

Neither the Advisory Committee nor any member thereof (acting in such capacity) shall undertake any action on behalf of the Fund or have the power to bind the Fund or any authority to act for the Fund or on its behalf.

3.7.3 Reimbursement of Expenses.

Without derogating from the provisions of 12.2.1 below, members of the Advisory Committee shall receive from the Fund reimbursement for any reasonable out of pocket travel expenses incurred in connection with their attendance at meetings of the Advisory Committee, but shall receive no fees or other compensation from the Fund in connection with their duties as members of the Advisory Committee.

3.7.4 Voting; Adoption of Rules and Procedures.

The Advisory Committee will convene from time to time, at the request of the General Partner, and such meetings may be in person, by telephone or by any other electronic medium. All approvals, disapprovals and other actions taken by the Advisory Committee shall be submitted to all members of the Advisory Committee and, except as otherwise provided in this Agreement, shall be authorized by a majority in number of the Advisory Committee members or as otherwise resolved by the General Partner and the members of the Advisory Committee; *provided* that any approval, disapproval or other action to be taken by the Advisory Committee under this Agreement may instead, at the option of the General Partner, be taken by a Majority-in-Interest of the Fund Investors. Any approval, disapproval or other action required or permitted to be taken by the Advisory Committee (or by Majority-in-Interest of the Fund Investors in lieu thereof) may be taken by written consent signed by not less than the majority required to take such approval, disapproval

or other action. The General Partner may adopt other rules and procedures, not inconsistent with this Agreement, relating to the conduct of the Advisory Committee's affairs, provided that such rules and procedures shall be subject to the approval of the Advisory Committee.

3.8 ISRAELI TAXATION

The General Partner is authorized to approach (or to authorize another Person to approach) the Tax Authority of the State of Israel (the "**Israeli Tax Authority**") and apply for and negotiate the terms of one or more tax ruling letters with respect to the taxation of the Partnership and/or its Partners in Israel (each, an "**Israeli Tax Ruling**"). In addition, the General Partner shall be authorized to implement and comply with any Israeli Tax Ruling granted, if granted, to the Partnership, and require any Partner to make such certifications in writing or otherwise, and to require any Partner to fully disclose the identity of such Partner's equity interest holders (if any), the amount of their respective direct and indirect investments in the Partnership, their tax status and such other information as may be required under, or in order to apply for, obtain, or to comply with, any Israeli Tax Ruling, and each Partner shall be obligated to timely comply in full with all such requirements.

To the extent required under any Israeli Tax Ruling issued to the Partnership and/or as will be reasonably required by the General Partner, each Partner will give its consent to the terms of any Israeli Tax Ruling as those terms apply to such Partner, and will undertake to obey and comply with them. For the avoidance of doubt, it is hereby clarified that the General Partner need not consult with, nor obtain the approval of, any Partner with respect to any of the terms of any Israeli Tax Ruling.

For the avoidance of doubt, each Partner acknowledges and understands that the issuance of an Israeli Tax Ruling and its terms are in the sole discretion of the Israeli Tax Authority. Each Partner further acknowledges that receipt of the Israeli Tax Ruling is not a condition to any closing, and there is no guarantee that the Israeli Tax Ruling will be provided, nor what would be the terms thereof (or that its terms would not change in the future).

ARTICLE 4 - INVESTMENTS AND ACTIVITIES

4.1 INVESTMENT LIMITATION.

Without the approval of the Advisory Committee, the Fund shall not invest more than 15% of the Fund Subscriptions in any single Portfolio Company. For that purpose, the Fund Subscriptions prior to the Final Closing Date shall be deemed to be the higher of: (a) the Fund Subscriptions at the relevant time, and (b) US$ 30 million.

4.2 BORROWING.

The Partnership will not borrow money except for amounts which may be borrowed as bridge financing for a period of up to 180 days, for purpose of satisfying short-term working capital needs

of the Prtnership and bridge drawdown notices; *provided* that the aggregate borrowing incurred by the Partnership, measured as at the time of obtaining such borrowing, shall not exceed 10% of the aggregate Subscriptions. The Partnership may pledge its assets with respect to any such borrowing. Nothing herein shall derogate from the ability of Portfolio Companies to borrow money and/or provide guarantees.

4.3 PERMITTED TEMPORARY INVESTMENTS.

The Partnership shall be permitted to make short-term investments of cash pending distribution, or of Contributions made and pending payment of Partnership Expenses or an investment in a Portfolio Company, in bank account deposits, as determined by the General Partner, in its sole discretion ("**Temporary Investments**").

4.4 REINVESTMENT

The Partnership may, at any time, (i) retain cash received from a Portfolio Company or from any other sources and refrain from distributing such proceeds in accordance with Article 7 below, and/or (ii) recall, according to 6.2.1(c), amounts distributed to Partners, and in each of (i) or (ii) use such proceeds for the purpose of reinvesting in additional investments (subject to limitations on funding new Portfolio Companies after the expiration of the Investment Period, as set forth in 6.1.3), paying Partnership Expenses or making reserves for follow-on investments and/or future Partnership Expenses; *provided*, however, that the total investment in all Portfolio Companies made by the Partnership, including from such re-invested proceeds, shall not exceed 100% of the Fund Subscriptions.

ARTICLE 5 - FEES AND EXPENSES

5.1 ORGANIZATIONAL EXPENSES.

The Partnership shall reimburse the General Partner and any Affiliate thereof for all Organizational Expenses incurred by any of them, up to a maximum aggregate amount equal to 1% of the Fund Subscriptions as at the Final Closing Date. Organizational Expenses in excess of the said limitation shall be initially borne by the Partnership, and then repaid by the General Partner through a reduction of the Management Fee otherwise payable to the General Partner, if available, or otherwise returned to the Partnership by the General Partner.

5.2 PARTNERSHIP EXPENSES AND MANAGEMENT FEE.

5.2.1 Payment of Expenses.

5.2.1.1 ***General.***

Subject to 5.2.1.2, the Partnership agrees to assume and pay all ordinary and extraordinary administrative, operating and other expenses attributable to the Partnership's activities (collectively, "**Partnership Expenses**") on the terms and conditions herein set forth.

5.2.1.2 ***General Partner expenses.***

The General Partner, the Management Company or Affiliates thereof shall bear only the following expenses: compensation and expenses of the employees of the General Partner and the Management Company (as applicable), including salary of the Managing Partner, and fees and expenses for office space and facilities, utilities and telephone, insofar as they relate to the investment activities of the Partnership.

5.2.1.3 ***Partnership expenses.***

Partnership Expenses borne by the Partnership shall include, without limitation: the Management Fee; Organizational Expenses; liquidation expenses of the Partnership; any sales or other taxes (other than a Tax Liability of specific Partners, but including without limitation any value added tax assessed against the Partnership, the General Partner or any Affiliate of the General Partner on account of payments or distributions made pursuant to this Agreement), fees or government charges which may be assessed against the Partnership; any payments in connection with the consummation of the Partnership's Investments (including with respect to transactions which did not come into force and broken-deal fees); commissions or brokerage fees or similar charges incurred in connection with the purchase or sale of securities (including any merger fees payable to third parties and whether or not any such purchase or sale is consummated); expenses of members of the Advisory Committee (including reasonable travel-related costs and expenses); the costs and expenses (including reasonable travel-related expenses) of hosting annual and special meetings for the Partnership; all expenses relating to litigation and threatened litigation involving the Partnership, including indemnification expenses; expenses attributable to normal and extraordinary investment banking, commercial banking, accounting, auditing, appraisal, legal, finder's, custodial, transfer and registration services provided to the Partnership and any expenses attributable to consulting services, including in each case services with respect to the proposed purchase or sale of securities by the Partnership that are not reimbursed by the issuer of such securities or others (whether or not any such purchase or sale is consummated); reasonable travel expenses in connection with the investment activities of the Partnership; expenses associated with outsourcing certain financial reporting and accounting services provided to the Partnership; costs of financial statements and other reports (including Schedule K-1s) and communications with the Partners, as well as costs of all governmental returns, reports and filings; governmental registration, filing and licensing costs and fees relating to the Partnership, the General Partner and the Management Company; premiums for liability or other insurance to protect the Partnership, the General Partner, the Management Company and any of their respective direct or indirect partners, members, stockholders, officers, directors, employees, agents or Affiliates thereof, the members of the Investment Committee and the members of the Advisory Committee, in connection with the activities of the Partnership; and all other expenses properly chargeable to the activities of the Partnership.

5.2.1.4 ***Management Company.***

The General Partner may delegate, at its own cost and expense, to an Affiliate thereof (the "**Management Company**") the management and administrative responsibilities of the General Partner under this Agreement. Any such delegation shall not relieve the General Partner of its own duties and obligations to the Partnership as set forth in this Agreement.

5.2.2 Management Fee.

5.2.2.1 ***Amount.***

Subject to the limitations set forth below, throughout the term of the Partnership the Partnership shall pay the General Partner (or to the Management Company, if so instructed by the General Partner), an advanced quarterly management fee for the investment advice and other services to be provided hereunder (the "**Management Fee**"), calculated with respect to each Limited Partner as set forth herein. As of the Second Closing Date and during the Investment Period, the Management Fee payable with respect to each Limited Partner will equal 0.5% per quarter of the Subscriptions made by such Limited Partner on or after the Second Closing Date. Thereafter, the Management Fee payable with respect to each Limited Partner will be equal to 0.5% per quarter of such Limited Partner's Sharing Percentage of the aggregate cost basis of all the Investments made by the Partnership, reduced by the aggregate cost basis of the Investments that were written off to zero by the Partnership, distributed (including partial distributions, with respect to the distributed portion) by the Partnership to its Partners, sold or otherwise disposed of by the Partnership as of the first day of such fiscal quarter; *provided that* in no event during the Investment Period or thereafter will the annual aggregate Management Fee payable to the General Partner be less than US$ 500,000 (and each Limited Partner's portion in such amount shall be calculated based on the Subscriptions made by it on or after the Second Closing Date out of the aggregate Subscriptions made to the Partnership on or after the Second Closing Date). The Management Fee payable for any period of less than a full fiscal quarter shall be proportionately adjusted based upon the ratio the number of days in such period bears to 90.

5.2.2.2 ***Timing of Payments.***

Payments of the Management Fee shall be calculated and made quarterly in advance on the first Business Day of each fiscal quarter of the Partnership. The first payment shall due upon the Second Closing Date. If the Second Closing Date is not the first day of a fiscal quarter of the Partnership, the Partnership's first payment shall include the pro rata amount due until the beginning of the first succeeding fiscal quarter of the Partnership.

5.3 MANAGEMENT FEE ADJUSTMENTS.

5.3.1 Adjustment for Excess Organizational Expenses.

The Management Fee payable for each of the first four (4) years after the Second Closing Date shall be reduced (but not below zero) in each of such years, by an amount equal to one-fourth of any Organizational Expenses paid by the Partnership in excess of cap amount set out in 5.1 above; *provided that* if the full amount of excess Organizational Expenses is not offset in such four-year period then the Management Fee otherwise payable thereafter shall be reduced (but not below zero) by the remaining amount of such excess Organizational Expenses. If the full amount of such excess Organizational Expenses is not offset prior to the end of such four-year period, the General Partner shall pay over to the Partnership the remaining amount of such excess.

5.3.2 Adjustment for Fees Subject to Offset.

The amount of any transaction fees, directors' fees or advisory or consulting fees, break-up fees or other similar fees, whether in cash or in kind, actually received by the General Partner, the Management Company or the Managing Partner from any Portfolio Company (other than reimbursement of out-of-pocket expenses or in connection with co-investments), net of any taxes paid or payable in connection therewith as assessed by the Gerneral Partner (collectively "**Fees Subject to Offset**") shall be offset against and reduce the amount of the Management Fee payment next due to the General Partner pursuant to 5.2.2.1. Fees Subject to Offset that would have been applied as an offset to Management Fees next due in accordance with this 5.3.2 but were not so applied shall be carried forward and shall be applied to subsequent Management Fees.

Notwithstanding the above, any Fees Subject to Offset paid to the General Partner, the Management Company or the Managing Partner in respect of a Portfolio Company in which a Parallel Fund (or any other entity formed or managed by the General Partner or an Affiliate thereof has also invested) shall, for purposes of reducing the Management Fee, be allocated between the Partnership and such other fund(s) pro rata in accordance with the relative investments made by each of them in such Portfolio Company.

5.3.3 Allocation of Management Fee Reduction.

Any reduction in the Management Fee pursuant to 5.3.1 and/or 5.3.2 shall be allocated among the Limited Partners in the ratio of the quarterly payments of the Management Fee payable by such Limited Partners which are to be so reduced.

ARTICLE 6 - CAPITAL OF THE PARTNERSHIP

6.1 OBLIGATION TO CONTRIBUTE.

6.1.1 In General.

(a) Each Partner shall make Contributions to the Partnership, in accordance with and subject to the terms of this Agreement, in an aggregate amount equal to such Partner's Subscription. All Contributions shall be made to the Partnership by wire transfer or other transfer of immediately available US$ on the relevant due date and to the account designated for such purpose by the General Partner in drawdown notices issued to the Partners. Except as otherwise provided in this Agreement, each Partner shall be obligated to make payment in full of each required Contribution together with any interest or other amounts due thereon, and no Partner shall make (nor shall the General Partner or the Partnership be obligated to accept) less than the full amount of any such required Contribution.

(b) Each Partner shall pay the Contributions determined in accordance with the provisions of this 6.1.1 and specified in the relevant drawdown notice issued

pursuant to 6.1, as the same may be revised pursuant to 6.1.1(c). The required Contribution of each Partner shall be made no later than the drawdown date specified in such drawdown notice, up to an amount not to exceed such Partner's unpaid Subscription.

(c) Notwithstanding 6.1.1(b), if the actual capital Contribution required to be paid by a Partner changes after delivery of a drawdown notice (due, for example, to a default by another Partner), the General Partner shall issue a revised drawdown notice to the Partners, *provided* that the new drawdown date with respect to the amount of any increase shall be at least five (5) Business Days after the date that such revised drawdown notice is given. Such Partners shall pay any additional capital Contribution thereby required no later than the drawdown date specified in such revised drawdown notice.

6.1.2 Contributions.

The General Partner is authorized to draw down capital Contributions from time to time for any purposes contemplated under this Agreement (subject to 6.1.1.(c) above and 6.1.3 below) upon not less than seven (7) Business Days' prior written notice.

6.1.3 Investment Period.

The period commencing upon the Initial Closing Date and ending on the fourth anniversary of the Final Closing Date, shall be referred to herein as the "**Investment Period**". The Investment Period (i) may be extended by a one-year period if so determined by the General Partner and approved by the Advisory Committee or in accordance with 6.1.4(c), and (ii) may be terminated earlier in accordance with the provisions of 6.1.4 or if so determined by the General Partner, in its sole discretion. After the expiration of the Investment Period, the General Partner shall not cause the Partnership to fund new investments in Portfolio Companies, *other than*: (a) investments as to which, prior to the expiration of the Investment Period, the Partnership and the prospective Portfolio Company in which such investment is to be made (or its Affiliates) have entered into a letter of intent or a term sheet setting forth the material terms and conditions of such investment; (b) follow-on investments in existing Portfolio Companies or their successors; or (c) any other investment in a Portfolio Company not described in (a) and (b) above, if the Advisory Committee approves such capital Contribution.

6.1.4 Key Person Event.

(a) If at any time during the Commitment Period, ~~the Managing Partner~~Mr. Danny Peled does not devote a substantial majority of his business time to the management of the General Partner, the Fund and any Related Entity, the General Partner will provide a written notice thereof to the Limited Partners and the Investment Period will be suspended (a "**Key Person Event**")

(b) The General Partner shall have twelve (12) months from the occurrence of the Key Person Event to prepare and present a plan for the future management of the Partnership and obtain the approval of such plan by the Advisory Committee.

(c) If such approval is obtained, the suspension shall be lifted and the Investment Period shall be extended by the amount of time during which the Investment Period was suspended. If such approval is not obtained, the suspension shall become permanent as of the date which is 12 months from the date of such occurrence.

6.1.5 Procedure for Notice of Capital Calls; Rescission or Postponement.

The General Partner shall send written notice of a call for capital Contributions, or a rescission or postponement of such a call, to each Limited Partner by electronic mail. A notice calling for capital Contributions may be rescinded or postponed by the General Partner by prompt written notice.

6.1.6 Offsets Against Distributions; No Interest or Withdrawals.

In connection with any call for capital Contributions under this Agreement, the General Partner is authorized to apply cash that would otherwise be distributed to a Partner in satisfaction of such Partner's obligation to make a capital Contribution pursuant to such call, to the extent thereof. The amount applied shall be deemed distributed to the Partner by the Partnership and then contributed by the Partner to the Partnership in satisfaction of such Partner's obligation to contribute capital hereunder and such Partner's Contribution shall be adjusted accordingly. No interest shall accrue on any Partner's Contribution. No Partner shall have the right to withdraw or to be repaid its Contribution except as specifically provided in this Agreement.

6.1.7 Contributions of the General Partner and Associated Persons.

At the Initial Closing Dates, affiliates of the General Partner (the "**Initial Limited Partners**") committed to invest an aggregate amount of US$ 6 million (the "**Initial GP Commitment**"), which has been fully contributed to the Partnership and used by the Partnership prior to the Second Closing Date, to make the Existing Investments and for payment of the Partnership's expenses up until the Second Closing Date.

Notwithstanding anything to the contrary herein, no further amounts are required to be contributed to the Partnership on account of the Initial GP Commitment; *however* as at the Second Closing certain shareholders of the General Partner (and/or Affiliates thereof) will make additional Subscriptions to the Partnership, in an aggregate amount of at least US$ 4,200,000. Other than as provided above or in connection with the return of any distributions pursuant to this Agreement and/or the Ordinace, no further amounts are required to be contributed to the Partnership by the Initial Limited Partners.

6.1.8 Benefit of Contributions.

The provisions of this Agreement, including this Article 6, are intended to benefit the Partners and, to the fullest extent permitted by law, shall not be construed as conferring any benefit upon any creditor of the Partnership (and no such creditor of the Partnership shall be a third party beneficiary of this Agreement) and neither the Limited Partners nor the General Partner shall have any duty or obligation to any creditor of the Partnership to make any Contribution to the Partnership or to issue any call for capital pursuant to this Agreement, except as specifically provided in this Agreement.

6.2 RETURN OF CERTAIN AMOUNTS SUBJECT TO SUBSEQUENT DRAWDOWN.

6.2.1 Return of Certain Distributions.

(a) To facilitate the distribution of cash or property to the Partners received in connection with Investments in circumstances in which the Partnership may have a continuing obligation to return some portion or all of such cash or property as a result of an indemnification or similar obligation on the part of the Partnership, whether in connection with a breach of representations or warranties or otherwise, the General Partner may cause the Partnership to distribute cash or property at any time to the Partners subject to the requirement that an amount of cash equal to all or a portion of such cash or property be returned to the Partnership to satisfy such indemnification or similar obligation. Any amounts required by the General Partner to be returned pursuant to this 6.2.1(a) shall be returned by each Partner upon not less than seven (7) days' prior notice, which notice shall state that such return is required pursuant to this 6.2.1(a).

(b) Without derogating from 6.2.1(a) above, in the event that the Partnership incurs a liability or obligation of indemnification under Article 12 and (1) the Partnership does not have sufficient available funds to satisfy such liability or obligation, and (2) each Partner (other than a Defaulting Partner or a non-contributing Partner pursuant to 6.4) has already made aggregate Contributions equal to such Partner's Subscription, then the General Partner may require that each Partner return previous distributions made to it, upon not less than seven (7) days' prior written notice from the General Partner, provided however, that no Partner shall be obligated to return an amount under this 6.2.1(b), (i) after the expiration of the third anniversary of the final liquidating distribution of the Partnership, unless a written notice was sent during that period that the General Partner or the Partnership are in the process of litigating, arbitrating or otherwise settling claims with respect to such liability or obligation of indemnification, or (ii) exceeding 50% of the aggregate distributions received thereby from the Partnership throughout the term of the Partnership.

(c) Without derogating from 6.2.1(a) and (b) above, for the purpose of giving effect to 4.4 (*Reinvestment*), all or a portion of a distribution made to the Partners under Article 7, may be recalled by the General Partner.

(d) The aforementioned return obligations shall apply to all Partners *pro-rata* based on their respective distribution amounts; *provided* that the General Partner may make any necessary adjustments as it deems necessary in order to reflect more closely the Partners' relative economic interests in the Partnership as set forth in Articles 7 and 10. With respect to the return of a distribution that was made in-kind, each Partner may, at its option, return an identical amount in cash equal to the value of the relevant asset on the date of distribution or the relevant asset (or a portion thereof if applicable) based on the value of such asset on the date of distribution.

(e) The failure by a Partner to contribute any amount required in accordance with 6.2.1, shall be treated as a failure to make a capital Contribution when due, and the Partnership may pursue and enforce all rights and remedies pursuant to 6.3. The provisions of this 6.2.1 shall not be construed or interpreted as inuring to the benefit of any Person other than the Partnership and the Partners. For the avoidance of doubt, a Partner's obligation under this 6.2.1 shall survive the winding up and liquidation of the Partnership.

(f) Nothing contained in this 6.2.1 shall derogate from any return obligation which may arise under any applicable law.

6.2.2 Unused Contributions.

The General Partner, in its sole discretion, may cause the Partnership to return to the Partners all or any portion of the capital Contributions that have not been invested in one or more Investments or applied to the payment or reimbursement of expenses or for any other purposes permitted under this Agreement together with any interest or other income or gains earned by the Partnership with such capital Contributions prior to their return, if any. Such Contributions shall be returned to the Partners pro rata in proportion to the respective amounts of Contributions made by them with respect to the drawdown that gave rise to the Contribution that is being returned, will be added to the uncalled Subscriptions and may be recalled by the General Partner. For the avoidance of doubt, the General Partner in its sole discretion may cause the Partnership to use capital Contributions which are not returned to the Partners for any purpose for which the General Partner would otherwise be authorized to draw down capital Contributions under this Agreement.

6.3 FAILURE TO MAKE REQUIRED PAYMENT.

6.3.1 Interest.

Except as otherwise provided in this Agreement, upon any failure by a Limited Partner to pay a capital Contribution in full when due, interest will accrue at the Default Rate on the outstanding

unpaid balance of such capital Contribution, from and including the date such capital Contribution was due until the earlier of the date of payment of such capital Contribution by such Partner (or a transferee) or the date on which the General Partner imposes a Default Charge pursuant to 6.3.2(a). The "**Default Rate**" with respect to any period shall be the lesser of (a) 10% per annum or (b) the highest interest rate for such period permitted by applicable law. The General Partner, in its sole discretion, may waive the requirement to pay interest, in whole or in part.

6.3.2 Default.

Except as otherwise provided in this Agreement, if any Limited Partner fails to make a capital Contribution when due, and such failure continues for 10 Business Days after receipt by such Partner of written notice of such failure, then the General Partner may declare such Partner as a "Defaulting Partner" (a Partner so declared, a "**Defaulting Partner**"). Upon the occurrence of a default, the General Partner may, in its sole discretion, pursue one or more of the following alternatives:

(a) Impose a Default Charge upon the Defaulting Partner pursuant to 6.3.3;

(b) Offer the Defaulting Partner's entire interest in the Partnership to such Person as shall be designated by the General Partner (including other Limited Partner(s)), effective immediately upon written notice to the Defaulting Partner, at a price for that interest equal to the lesser of the then fair market value of the interest as determined by the General Partner or the pre-default balance in the Defaulting Partner's Capital Account, subject to such other terms as the General Partner in its sole discretion shall determine, and provided that the purchasers agree to assume the Subscription of the Defaulting Partner, including any portion then due and unpaid;

(c) Assist the Defaulting Partner in selling its interest in the Partnership, with the full assumption by the buyer of the Defaulting Partner's Subscription, including any portion then due and unpaid;

(d) Accept a late Contribution from the Defaulting Partner, with interest at the Default Rate (if any), in satisfaction of its then outstanding obligation to contribute hereunder;

(e) Cause the entire unpaid Subscription of the Defaulting Partner to become immediately due and payable;

(f) Cause any distributions which would otherwise be made to the Defaulting Partner to be applied against any amounts due and payable from the Defaulting Partner;

(g) The institution of an action for specific performance of the Defaulting Partner's obligation to contribute to the Partnership; and/or

(h) Pursue and enforce all of the Partnership's other rights and remedies against the Defaulting Partner under this Agreement, the relevant Subscription Agreement and the applicable laws, including but not limited to the commencement of a lawsuit to collect the unpaid capital Contribution, interest and costs, and reimbursement (with interest at the Default Rate) for any other damages suffered by the Partnership.

The remedies set forth above may be cumulative, and the use by the General Partner of one or more of them against a Defaulting Partner shall not preclude the use of any other such remedy.

6.3.3 Default Charge.

(a) The Partners agree that the damages suffered by the Partnership as the result of a default by a Defaulting Partner will be substantial and that such damages cannot be estimated with reasonable accuracy. As liquidated damages for such default (which each Partner hereby agrees is reasonable), and subject to 6.3.2, the General Partner may:

(1) (i) reduce the Defaulting Partner's Sharing Percentage, for all investments with respect to which the Defaulting Partner has a Sharing Percentage, by seventy-five percent (75%), (ii) reduce the Defaulting Partner's Capital Account by seventy-five percent (75%), and (iii) reduce the amount of all future distributions payable to the Defaulting Partner pursuant to 7.2.1 by seventy-five percent (75%) (clauses (i), (ii) and (iii), the "**Default Charge**") and withhold the remaining 25% of all future distributions that would otherwise be payable to the Defaulting Partner until dissolution of the Partnership; and

(2) require the Defaulting Partner to remain fully liable for payment of up to its pro rata share of Partnership Expenses (including Organizational Expenses and the Management Fee) if the default had not occurred.

(b) The General Partner shall apply amounts withheld by it under 6.3.3(a)(1) above to offset Partnership Expenses (including Organizational Expenses and the Management Fee) owed to the Partnership by the Defaulting Partner from time to time during the term of the Partnership.

(c) Upon application of a Default Charge to a Defaulting Partner no additional capital Contribution shall be accepted from the Defaulting Partner as of the date of such default and the Defaulting Partner's unpaid Subscription shall be reduced to zero.

(d) If the General Partner has withheld distributions from a Defaulting Partner pursuant to this 6.3.3 and subsequently determines to pay the withheld distributions to such Defaulting Partner, it may elect to (1) pay cash to such

Defaulting Partner in lieu of any distributions which were made to non-defaulting Partners in kind and withheld from such Defaulting Partner, but the Partnership shall not, in such event, be liable to such Defaulting Partner for any subsequent increase in the value of any assets which would have been distributed to such Defaulting Partner had such Defaulting Partner not defaulted, or (2) deliver to such Defaulting Partner the assets (or substantially identical assets) such Defaulting Partner would have received had the distribution to such Defaulting Partner not been withheld, but the Partnership shall not, in such event, be liable for any diminution in the value of such securities or other assets subsequent to the date such assets would have been distributed. Any losses incurred by the Partnership upon the disposition of the assets that would otherwise have been distributed to the Defaulting Partner in kind shall be for the account of the Defaulting Partner.

6.3.4 Additional Adjustments in Connection with Default Charge.

After the imposition of a Default Charge, the General Partner shall make such adjustments to subsequent distributions and subsequent allocations of net gain, net loss and any items in the nature of income, gain, loss or expense otherwise provided for in this Agreement to the extent necessary to give effect to the imposition of the Default Charge.

6.4 DEFAULT DUE TO CHANGE OF LAW.

6.4.1 General.

If, at any time before a capital Contribution is due, a Limited Partner shall obtain and deliver to the Partnership an opinion of counsel reasonably acceptable (as to form, substance and choice of counsel) to the General Partner to the effect that, as a result of any change in laws or any change in governmental rules or regulations applicable to such Limited Partner, all future payments by such Limited Partner of its unpaid Subscription (including, but not limited to, any part of the capital Contribution that is then due) will be unlawful, then such Limited Partner shall have no further right or obligation to pay any part of its unpaid Subscription.

6.4.2 Effect of Permitted Nonpayment.

If any Limited Partner is excused, pursuant to 6.4.1, from its obligation to make additional payments to the Partnership: (a) such Limited Partner shall not be deemed to be a Defaulting Partner with respect to such payments for purposes of 6.3; (b) such Limited Partner's unpaid Subscription shall be reduced to zero (without reducing any due and payable Contribution with respect to which such Limited Partner is in defulat pursuant to 6.3); and (c) the General Partner, in its sole discretion, may adjust subsequent Partnership allocations and distributions as necessary to ensure that, to the extent possible and subject to applicable law, the aggregate amounts allocated and distributed by the Partnership to such Partner over the term of the Partnership are equal to the aggregate amounts that would have been so allocated and distributed if such Partner's initial

Subscription had at all times been equal to its reduced Subscription after giving effect to this 6.4.2. The provisions of 6.3.5 shall apply to this 6.4 with respect to a Feeder Fund, *mutatis mutandis*.

ARTICLE 7 DISTRIBUTIONS

7.1 AMOUNT, TIMING AND FORM.

7.1.1 General.

Except as otherwise provided in this Agreement, the General Partner shall determine the amount, timing and form (whether in cash or in kind) of all distributions made by the Partnership.

7.1.2 Distribution of Proceeds of Investments.

Subject to 4.4 above, the Partnership shall distribute, in the manner described in this Article 7 or Article 10, as the case may be, all cash proceeds of its Investments as promptly as practicable. Notwithstanding the preceding sentence, the General Partner in its discretion may cause the Partnership to retain proceeds of investments for any purpose for which the General Partner would otherwise be authorized to draw down Contributions under this Agreement.

7.1.3 Form of Distributions; Apportionment of Distributions.

Prior to the winding up and liquidation of the Partnership distributions shall include only cash and/or Freely Tradable Securities. The General Partner shall not be precluded from making any other in-kind distributions to the Limited Partners upon the liquidation of the Partnership. Each asset to be distributed in kind shall be distributed to the Partners in proportion to their respective shares of the proposed distribution as provided in Article 7 or Article 10, as the case may be, except to the extent that a disproportionate distribution of assets is necessary.

7.1.4 Distributions to the General Partner.

Notwithstanding anything to the contrary in this Article 7, the General Partner, in its sole discretion, may elect not to receive part or all of any distribution to which it would otherwise be entitled under this Agreement and instead cause such amount to be distributed to the Limited Partners in the amounts and proportions set forth in 7.2.1; *provided, however*, that the General Partner, in its discretion, may subsequently distribute to itself, out of funds available therefor, additional amounts up to the amount that would result in the General Partner receiving the aggregate cumulative distributions it would have received had the General Partner not elected to forgo all or a portion of any distribution in accordance with this 7.1.4.

7.2 DISCRETIONARY DISTRIBUTIONS.

7.2.1 General.

Distributions shall be made from time to time in the discretion of the General Partner subject to 7.1. Distributable proceeds shall initially be apportioned among the Partners in proportion to their Sharing Percentages. Except as otherwise provided herein, the amount apportioned to each Limited Partner shall then be immediately reapportioned as between such Limited Partner, on the one hand, and the General Partner in consideration for the initiation, organization and formation of the Partnership, on the other hand, and distributed as follows (with each determination made as of the time of distribution):

(a) First, 100% to such Limited Partner, until such Limited Partner shall have received cumulative distributions pursuant to this sub-section (a) in an amount equal to its aggregate capital Contributions to the Partnership; and

(b) Second, (i) 80% to such Limited Partner, and (ii) 20% to the General Partner.

7.2.2 Operational Rules.

For purposes of 7.2.1 and this 7.2.2:

(a) If distributions to which a Defaulting Partner otherwise would have been entitled have been withheld pursuant to 6.3.3, the amounts so withheld shall be treated as having been distributed to such Partner and any subsequent distributions of such amounts to the Defaulting Partner shall be disregarded;

(b) Tax Distributions made to a Partner shall be taken into account as if such distributions had been made to such Partner pursuant to the applicable provisions of 7.2.1;

(c) Amounts treated as distributed to a Partner pursuant to 7.4 or 10.2. shall be taken into account as if such amounts had been distributed to such Partner pursuant to the applicable provisions of 7.2.1;

(d) Distributions made to any Partner's predecessors in interest shall be treated as having been made to such Partner (including for purposes of 6.2.1);

(e) The amount of any distribution in kind shall be equal to the fair market value of such assets at the time of distribution as determined in accordance with the provisions of 14.3; and

(f) If there are Defaulting Partners, distributions shall be modified to the extent required by Article 6, and references in this Article 7 to "all Partners" and to "each Partner" shall be modified accordingly.

7.3 TAX DISTRIBUTIONS.

The Partnership may, at the General Partner's sole discretion, distribute to each Partner, in respect of each fiscal year, an amount of cash, calculated based on the highest tax rate applicable to a Partner in the Partnership, in order to cover such Partners' tax liability with respect to the Partnership's income allocated to it. Tax distributions will count as distributions for all purposes, including without limitation for determining whether Partners have received a full return of their capital Contributions (a "**Tax Distribution**").

7.4 PAYMENT OF TAXES.

7.4.1 General.

If the Partnership incurs an obligation to pay directly any amount in respect of taxes with respect to amounts allocated or distributed to one or more Partners, including but not limited to withholding taxes imposed on any Partner's or former Partner's share of the Partnership gross or net income and gains (or items thereof), income taxes, and any interest, penalties or additions to tax ("**Tax Liability**"), or if the amount of a payment or distribution of cash or other property to the Partnership is reduced as a result of withholding by other parties in satisfaction of any such Tax Liability:

(a) All payments by the Partnership in satisfaction of such Tax Liability and all reductions in the amount of a payment or distribution that the Partnership otherwise would have received shall be treated, pursuant to this 7.4, as distributed to those Partners or former Partners to which the related Tax Liability is attributable;

(b) Notwithstanding any other provision of this Agreement, subsequent distributions to the Partners shall be adjusted by the General Partner in an equitable manner so that, to the extent feasible, the burden of taxes withheld at the source or paid by the Partnership is borne by those Partners to which such Tax Liability or other reduction is attributable; and

(c) The General Partner in its sole discretion may cause any amount treated pursuant to 7.4.1(a) as distributed to any Partner or former Partner at any time that exceeds the amount, if any, of distributions to which such Person is then entitled under this Agreement to be treated as a loan to such Person, and the General Partner shall give prompt written notice to such Person of the amount of such loan.

7.4.2 Tax Liability.

The General Partner, after consulting with the Partnership's accountants or other advisers, shall determine the amount, if any, of any Tax Liability or other reduction attributable to any Partner. For this purpose, the General Partner shall be entitled to treat any Partner as ineligible for an exemption from or reduction in rate of such Tax Liability under a tax treaty or otherwise except to the extent that such Partner provides the General Partner with such written evidence as the General

Partner or the relevant tax authorities may require to establish such Partner's entitlement to such exemption or reduction.

7.4.3 Repayment of Any Amounts Treated as Loans.

Each Partner covenants, for itself, its successors, assigns, heirs and personal representatives, that such Person shall repay any loan described in 7.4.1(c) not later than 30 days after the General Partner delivers a written demand for such repayment (whether before or after the withdrawal of such Partner from the Partnership, but in no event later than the dissolution of the Partnership). Such Person shall pay interest to the Partnership at the rate of 1.5% per annum for the entire period commencing on the date on which the Partnership paid such amount and ending on the date on which such Person repays such amount to the Partnership together with all accrued but previously unpaid interest. The Partnership may collect such unpaid amounts (including interest) from any distributions that otherwise would be made by the Partnership to such Person and shall treat the amount so collected as having been distributed to such Person.

7.5 CERTAIN DISTRIBUTIONS PROHIBITED.

Anything in this Article 7 to the contrary notwithstanding, no distribution shall be made to any Partner if, and to the extent that, such distribution would not be permitted under any applicable law.

7.6 TREATMENT FOR U.S. TAX PURPOSES.

The Partnership is intended to be classified as a partnership for all tax purposes and the General Partner shall have the authority to make all tax elections, decisions and determinations.

ARTICLE 8 - CAPITAL ACCOUNTS; ALLOCATIONS

8.1 CAPITAL ACCOUNTS.

There shall be established on the books of the Partnership a capital account for each Partner (such Partner's "**Capital Account**") that shall be:

(a) *Increased* by (1) any capital Contributions made to the Partnership by such Partner pursuant to this Agreement and (2) any amounts in the nature of income or gain allocated to such Partner pursuant to this Article 8; *Decreased* by (1) any distributions made to such Partner and (2) any amounts in the nature of loss or expense allocated to such Partner pursuant to this Article 8; and

(b) Otherwise adjusted in accordance with the provisions of this Agreement including, but not limited to, 6.3 (relating to the imposition of a Default Charge).

8.2 ALLOCATIONS OF NET GAIN AND LOSS.

The net gain and losses of the Partnership shall be allocated among the Capital Accounts of the Partners to reflect the respective amounts they would receive if the Partnership was liquidated, all of its assets were sold for their fair values, all of its liabilities were satisfied, and the remaining amounts were distributed in liquidation pursuant to 10.2. Allocations for tax purposes shall be made in a manner consistent with the allocations to Capital Accounts, except to the extent necessary to take into account any differences between tax and book accounting, in which case the tax allocations shall be made in compliance with applicable tax laws. The General Partner may, in its discretion, adjust the allocation of profits and losses, or manage the Capital Accounts in a different manner, in order to comply with any applicable law, or to address tax considerations. Allocations are generally intended to be in accordance with Section 704 of the Code and regulations and guidance thereunder, including qualified income offset and other principles thereof.

ARTICLE 9 - DURATION OF THE PARTNERSHIP

9.1 TERM OF PARTNERSHIP.

The Partnership shall continue until the seventh anniversary of the Final Closing Date, unless its term is extended as provided in this 9.1, or unless it is sooner dissolved as provided in 9.2 or 9.3 or by operation of law. The term of the Partnership may be extended by up to three one-year periods by the General Partner, in its sole discretion. The General Partner shall notify the Limited Partners promptly of any extension.

9.2 WINDING UP AND DISSOLUTION.

The Partnership shall be wound up and dissolved only upon the occurrence of any of the following:

(a) If a court issues a binding judgment or decree rendering the dissolution of the Partnership and/or the General Partner, except for dissolution for the purpose of a merger with another Person or the re-organization of the Partnership and/or General Partner as applicable.

(b) If the General Partner, with the consent of a Majority-in-Interest of the Fund Investors, commenced winding up the Partnership, any Parallel Fund, and any Feeder Fund at any time on not less than 90 days' prior written notice to the Fund Investors.

(c) If a Cause Event had occurred~~ during the Commitment Period~~, and the Fund Investors holding at least sixty ~~six and two-thirds~~ percent (~~66 ⅔~~60%) in Interest of the Fund have resolved to dissolve all the entities comprising the Fund. The dissolution shall commence within thirty (30) days from the date such notice is delivered to the General Partner.

(d) If during the Commitment Period, Fund Investors holding at least seventy five percent (75%) in Interest of the Fund have resolved to dissolve all the entities comprising the Fund. The dissolution shall commence within thirty (30) days from the date such notice is delivered to the General Partner. The expiration of

the term of the Partnership (as such may be extended pursuant to 9.1 above).

The Partnership shall not be dissolved in the event of the dissolution, death, bankruptcy, insolvency, incompetency, disability, or substitution of any Limited Partner. Upon the occurrence of any of the aforementioned events the Limited Partner shall be replaced by such Person's legal successor which is authorized under applicable law to act in such Limited Partner's assets, including, in the event of a corporation, a receiver or a liquidator of such Limited Partner or, in the event of an individual Limited Partner, a trustee in bankruptcy, an official receiver of a bankrupt individual, a legal guardian or an heir.

If the Partnership is dissolved as a result of 9.2(d), then the General Partner shall be entitled to receive, upon dissolution, payment in an amount equal to the Management Fees that the General Partner would have been received from the Partnership in accordance with Section 5.2.2.1 above for a period of 12 months from dissolution, if the Partnership was not so dissolved. Nothing herein shall derogate from the General Partner's right to receive Carried Interest Distributions in accordance with this Agreement.

ARTICLE 10 - LIQUIDATION OF ASSETS

10.1 GENERAL.

Upon commencement of its winding up, the Partnership's assets shall be liquidated in an orderly manner. The General Partner shall be the liquidator to wind up the affairs of the Partnership pursuant to this Agreement; *provided*, *however*, that (i) pursuant to the Ordinance, the courts may, under certain circumstances appoint another liquidator, and (ii) in case where there was a Cause Event, the General Partner shall not act as the liquidator of the Partnership and shall not be involved in the liquidation of the Partnership and the liquidator shall be determined by the Advisory Committee.

10.2 LIQUIDATING DISTRIBUTIONS.

The liquidator shall pay or provide for the satisfaction of the Partnership's liabilities and obligations to creditors. In performing its duties, the liquidator is authorized to sell, exchange or otherwise dispose of the assets of the Partnership in such reasonable manner as the liquidator shall determine.

To the extent on the date of the commencement of the winding up there are any remaining assets held by the Partnership, then the Partnership's liquidation shall take place by realizing the Partnership's assets and distributing any proceeds thereof. The proceeds from liquidation shall be paid in the following manner and priority:

(a) Payment of the expenses of liquidation (including reasonable compensation for the services of the liquidator).

(b) Satisfying the debts and liabilities of the Partnership, other than debts and liabilities to Partners.

(c) Satisfying any debts and liabilities of the Partnership to the Partners.

(d) All remaining proceeds shall be paid to all Partners in accordance with the distribution provisions set forth in Article 7 of this Agreement.

Distributions will be made in cash (to the extent feasible) or in kind (directly or indirectly through a special purpose vehicle controlled by the General Partner or a Person associated with the General Partner), in the sole discretion of the liquidator. During the liquidation of the Partnership, the liquidator shall furnish to the Partners the financial statements and other information specified in 14.2, subject to 14.8.6.

10.3 EXPENSES OF LIQUIDATOR.

The expenses incurred by the liquidator in connection with winding up the Partnership, all other losses or liabilities of the Partnership incurred in accordance with the terms of this Agreement, and reasonable compensation for the services of the liquidator shall be borne by the Partnership. If the General Partner serves as the liquidator, it shall not be entitled to additional compensation for providing services in such capacity; however it shall be entitled to receive the Management Fee throughout all the liquidation period.

10.4 DURATION OF LIQUIDATION.

A reasonable time shall be allowed for the winding up of the affairs of the Partnership in order to maximize its profits and minimize any losses that might otherwise result.

10.5 LIABILITY FOR RETURNS.

10.5.1 General.

The liquidator, the General Partner and their respective partners, members, stockholders, officers, directors, managers, employees, agents and Affiliates shall not be personally liable for the return of the capital Contributions of any Partner.

10.5.2 Limited Partner Obligations.

No Limited Partner shall be obligated to restore to the Partnership any amount with respect to a negative Capital Account; *provided, however*, that this provision shall not affect the obligations of Partners to make their agreed-upon capital Contributions and any other payments to the Partnership that are required under this Agreement or applicable law, including without limitation 6.2.

10.5.3 General Partner Return Obligation.

After the Partnership has made its final distribution of assets pursuant to 10.2, if with respect to any Limited Partner other than a Defaulting Partner, either (a) the General Partner has received aggregate Carried Interest Distributions attributable to such Limited Partner that exceed 20% of the excess of (i) distributions apportioned to such Limited Partner pursuant to 7.2.1 over (ii) the Contributions of such Limited Partner or (b) the distributions received by such Limited Partner pursuant to 7.2.1 and 10.2 are not sufficient to provide such Limited Partner with cumulative distributions equal to such Limited Partner's Contributions (the greater amount under clause (a) or (b) above, the "**Shortfall Amount**"), then the General Partner shall return to the Partnership, in cash or in assets distributed in kind by the Partnership or in any combination thereof, on or before the 90th day after such final distribution of assets by the Partnership, an amount equal to the lesser of (x) the Shortfall Amount and (y) the amount of the aggregate Carried Interest Distributions received by the General Partner attributable to such Limited Partner, (i) *minus* the amount of any taxes payable by the General Partner (or any direct or indirect carried interest participant, as applicable) as a result of the entitilment of such Persons to such Carried Interest Distributions or allocations with respect thereto, and (ii) *plus* the aggregate amount by which the taxes payable by the General Partner (or any direct or indirect carried interest participant, as applicable) are actually reduced as a result of the Contribution of amounts to the Partnership pursuant to this 10.5.3; *provided, however*, that clause (ii) shall apply only to the extent any such tax benefit is realized no later than two years after the year in which the Partnership makes its final distribution of assets pursuant to 10.2. To the extent that assets distributed in kind by the Partnership are returned to the Partnership pursuant to the terms of this 10.5.3, such assets shall be valued as of the date of such return at the fair market value thereof determined pursuant to 14.3. For purposes of this 10.5.3, distributions pursuant to 10.2 shall be treated as distributions pursuant to 7.2.1, as if such amounts were distributed pursuant 7.2.1, rather than 10.2. "**Carried Interest Distributions**" with respect to a Limited Partner means distributions in an amount equal to the aggregate distributions to the General Partner pursuant to 7.2.1 with respect to such Limited Partner since inception.

10.5.4 Distribution of Returned Amounts.

Amounts returned by the General Partner to the Partnership pursuant to 10.5.3 shall be paid to creditors of the Partnership or distributed to the Partners as set forth in 10.2. In no event shall 10.2 be enforceable for the benefit of any Person other than the Limited Partners, their successors and their assigns.

10.6 POST-DISSOLUTION INVESTMENTS.

Notwithstanding anything to the contrary set forth in this Article 10, but subject to the other limitations on investments set forth in this Agreement, the liquidator may, at any time after the Partnership commences winding up, cause the Partnership to make additional investments in entities which were Portfolio Companies on the date it commenced winding up (including any successor to, or Affiliate of, a Portfolio Company), if the liquidator believes that such additional investments are in the best interest of the Partnership.

10.7 DISSOLUTION.

Upon completion of the Partnership's winding up, the General Partner or other liquidator shall file a notice of dissolution in accordance with the Ordinance and the Partnership will then dissolve.

ARTICLE 11 - LIMITATIONS ON OFFERINGS, TRANSFERS AND WITHDRAWALS OF PARTNERSHIP INTERESTS

11.1 TRANSFER OF GENERAL PARTNER'S INTERESTS.

The General Partner shall not assign, pledge, mortgage, hypothecate, give, sell or otherwise dispose of or encumber (each such act, a "**Transfer**") all or any part of its general partnership interest in the Partnership, except (a) in connection with the change or technical reconstitution or reorganization of the form of legal entity of the General Partner, (b) with the consent of a majority-in-interest of the Fund Investors, or (c) to an Affiliate of the General Partner or the Management Company. Any attempted Transfer of the General Partner's interest except in compliance with the preceding sentence shall be void. If a General Partner Transfers its interest pursuant to this 11.1, the transferee shall be admitted to the Partnership only upon the written consent of the transferring General Partner.

11.2 TRANSFERS OF LIMITED PARTNERSHIP INTERESTS.

11.2.1 General.

No Transfer of a Limited Partner's interest in the Partnership, in whole or in part, shall be made other than pursuant to this 11.2. Any attempted Transfer of all or any part of a Limited Partner's interest in the Partnership without compliance with this Agreement shall be void. Each Transfer shall be subject to all of the terms, conditions, restrictions and obligations set forth in this Agreement, and be evidenced by a written agreement executed by the transferor, the transferee(s) and the General Partner, in form and substance satisfactory to the General Partner.

11.2.2 Consent of General Partner.

The prior written consent of the General Partner, which may be granted or withheld in its sole discretion, shall be required for any Transfer of all or part of any Limited Partner's interest in the Partnership, including a Transfer of solely an economic interest in the Partnership. As a condition to its consent to a Transfer, the General Partner shall be authorized to impose such terms as it deems appropriate, in its reasonable discretion.

11.2.3 Required Representations by Parties.

The transferor and each transferee shall provide to the General Partner, in connection with any proposed Transfer, such written representations as the General Partner reasonably may request. The General Partner and counsel to the Partnership shall be permitted to rely upon any representations made by the transferor and transferee(s), and on written representations from other Partners made prior to or contemporaneously with such proposed Transfer. The General Partner, in its sole discretion, may waive its right to obtain any representations otherwise required by this 11.2.3

11.2.4 Opinion of Counsel.

Any Transfer otherwise permitted hereunder will be made only upon receipt by the Partnership of a written opinion of counsel for the Partnership, or of other counsel reasonably satisfactory to the General Partner, in form and substance reasonably satisfactory to the General Partner, as to compliance with 11.2 and such other legal matters as the General Partner reasonably may request. The General Partner may waive, in whole or in part, the requirement of an opinion pursuant to this 11.2.4.

11.2.5 Reimbursement of Transfer Expenses.

The transferor of any interest in the Partnership hereby agrees to reimburse the Partnership, at the request of the General Partner, for any expenses reasonably incurred by the Partnership in connection with such Transfer, including the costs of seeking and obtaining the legal opinion required by 11.2.4 and any other legal, accounting and miscellaneous expenses ("**Transfer Expenses**"), whether or not such Transfer is consummated. At its election, and in any event if the transferor has not reimbursed the Partnership for any Transfer Expenses incurred by the Partnership in preparing for or consummating a proposed or completed Transfer within ten days after the General Partner has delivered to such Partner written demand for payment, the General Partner may offset the amount of such Transfer Expenses against any distribution payable under Articles 7 or 10 with respect to the interest transferred or proposed to be transferred (it being understood that the amount so offset shall be deemed to have been distributed).

11.3 ADMISSION OF SUBSTITUTED LIMITED PARTNERS.

11.3.1 General.

Any transferee of a Partnership interest transferred in accordance with the provisions of this Article 11 shall be admitted as a Limited Partner only with the General Partner's written consent (which consent may be withheld for any reason or for no reason and the transferee's written agreement to be bound by the terms of this Agreement as a Limited Partner. Without the written consent of the General Partner to such Transfer and the written opinion of counsel required by 11.2.4 (or waiver thereof by the General Partner), no transferee of a Partnership interest shall be admitted as a Limited Partner.

11.3.2 Effect of Admission.

The transferee of an interest in the Partnership transferred pursuant to this Article 11 that is admitted to the Partnership as a Limited Partner shall succeed to the rights and liabilities of the transferor Limited Partner with respect to such interest and, after the effective date of such admission, the Subscription, Contribution, Sharing Percentage and Capital Account of the transferor shall become the Subscription, Contribution, Sharing Percentage and Capital Account of the transferee, to the extent of the interest transferred. If a transferee is not admitted to the Partnership as a Limited Partner, (a) such transferee shall have no right to participate with the Limited Partners in any votes taken or consents granted or withheld by the Limited Partners

hereunder, and (b) the transferor (including, if applicable, the estate, legal representative, or other successor of the original owner) shall remain liable to the Partnership for all Contributions and other amounts payable with respect to the transferred interest to the same extent as if no Transfer had occurred.

11.4 NON-COMPLIANT TRANSFER.

If a Transfer has been proposed or attempted but has not satisfied the requirements of this Article 11 (including, as determined in good faith by the General Partner, any transaction which does not otherwise constitute a Transfer but a purpose of which is to achieve indirectly a result similar to that which would be achieved directly if such transaction were structured as a Transfer), the General Partner shall not admit the purported transferee as a Limited Partner but, to the contrary, shall use its reasonable best efforts to ensure that the Partnership (a) continues to treat the transferor as the sole owner of the interest in the Partnership purportedly transferred, (b) makes no distributions to the purported transferee and (c) does not furnish to the purported transferee any tax or financial information regarding the Partnership. The General Partner shall also use its reasonable best efforts to ensure that the Partnership does not otherwise treat the purported transferee as an owner of any interest in the Partnership (either legal or equitable), unless required by law to do so. The Partnership shall be entitled to seek injunctive relief, at the expense of the purported transferor, to prevent any such purported Transfer.

11.5 MULTIPLE OWNERSHIP.

If any Transfer results in multiple ownership of any Limited Partner's interest in the Partnership, the General Partner may require one or more trustees or nominees to be designated as representing a portion of or the entire interest transferred for purposes of (a) receiving all notices which may be given, and all payments which may be made, under this Agreement and (b) exercising all rights which the transferor as a Limited Partner has pursuant to the provisions of this Agreement.

ARTICLE 12 - EXCULPATION AND INDEMNIFICATION

12.1 EXCULPATION.

12.1.1 General.

No Covered Person, whether or not such Person remains a Covered Person, shall be liable to the Partnership or any Partner for any loss suffered by the Partnership or any Partner which arises out of any investment or any other action or omission of such Covered Person in connection with the Partnership, unless it has been finally determined by a court of competent jurisdiction that such conduct constitutes fraud, intentional misconduct, a material breach of this Agreement or gross negligence (as such term is defined under the laws of the State of Delaware, United States. For purposes of this Article 12, "**Covered Person**" shall mean the General Partner (including without limitation the General Partner acting as liquidator), the Managing Partner, the Management Company, and members of the Investment Committee and each partner, member, stockholder, officer, director, manager, employee, consultant, agent or Affiliate of any of the foregoing.

~~**12.1.2 Further Limitations.**~~

~~No action, suit or proceeding may be brought by any Limited Partner against a Covered Person with respect to any investment or any other act or omission by such Covered Person which relates to either the Partnership, the Fund Investors taken as a whole, or any class or group of Fund Investors (which includes a group of Fund Investors that are affected in the same manner), unless such action, suit or proceeding is brought by a Majority-in-Interest of the Partners, if with respect to the Partnership or the Fund Investors taken as a whole.~~

12.1.2 Deleted

12.1.3 Advisory Committee Members.

No member of the Advisory Committee and no Limited Partner who may have designated such member shall be liable to the Fund or any Fund Investor for any loss suffered by the Fund or any Partner which arises out of any action or omission of such member, *provided that* such member did not act in fraud or willful misconduct.

12.1.4 Liquidator.

No Person (other than the General Partner) that serves as liquidator pursuant to Article 10 shall be liable to the Partnership or any Partner for any loss suffered by the Partnership or any Partner which arises out of any action or omission of such Person, *provided that* such Person acted in good faith.

12.1.5 Advice of Experts.

No Covered Person, no member of the Advisory Committee and no Person serving as liquidator shall be liable to the Partnership or any Partner with respect to any action or omission taken or suffered by any of them in good faith if such action or omission is taken or suffered in reliance upon and in accordance with the opinion or advice of legal counsel (as to matters of law), or of accountants (as to matters of accounting), or of investment bankers, accounting or tax firms, or other appraisers (as to matters of valuation), or of any other employee, advisor, broker or any other agent; *provided that* any such professional or firm is selected by any such Person with reasonable care.

12.2 INDEMNIFICATION.

12.2.1 General.

The Covered Persons, each member of the Advisory Committee and each Limited Partner that designated a member to the Advisory Committee (each, an "**Indemnitee**") shall be indemnified (whether or not the Indemnitee continues to serve in such capacity at the time such action, suit or proceeding is brought or threatened), subject to the other provisions of this Agreement, by the Partnership against any claim, demand, controversy, dispute, cost, loss, damage, expense (including reasonable attorneys' fees), judgment and/or liability incurred by or imposed upon the

Indemnitees in connection with any action, suit or proceeding (including any proceeding before any administrative or legislative body or agency), to which the Indemnitees may be made a party or otherwise involved or with which the Indemnitees shall be threatened, by reason of the Indemnitee's being at the time the cause of action arose or thereafter, an Indemnitee, a liquidator, a partner, member, stockholder, director, officer, manager, trustee, employee, agent or Affiliate of any of the foregoing, or a partner, member, stockholder, director, officer, manager, trustee, employee, consultant or agent of any other organization in which the Partnership owns or has owned an interest or of which the Partnership is or was a creditor, which other organization the Indemnitee serves or has served as a partner, member, stockholder, director, officer, manager, trustee, employee, consultant or agent at the request of the Partnership, or by reason of actions or omissions taken or suffered in any such capacity.

12.2.2 Limitation on Indemnification.

An Indemnitee shall not be indemnified (a) in connection with any action, suit or proceeding solely among the General Partner, the Management Company, the Managing Partner, the members of the Investment Committee and/or their respective Affiliates, or (b) with respect to matters as to which the Indemnitee shall have been finally adjudicated in any such action, suit or proceeding to have acted with fraud, intentional misconduct, material breach of this Agreement or gross negligence (as such term is defined under the laws of the State of Delaware, Unitied States).

12.2.3 Notwithstanding the above, a member of the Advisory Committee and a Limited Partner who may have designated such member shall not be so indemnified only with respect to matters as to which they shall have been finally adjudicated in any such action, suit or proceeding to have acted with fraud or intentional misconduct. Advance Payment of Expenses.

The Partnership shall pay the expenses incurred by an Indemnitee in connection with any such action, suit or proceeding, or in connection with claims arising in connection with any potential or threatened action, suit or proceeding, in advance of the final disposition of such action, suit or proceeding, upon (a) the assignment by such Indemnitee of any and all rights that the Indemnitee may have to seek indemnification from a Third Party Indemnifier with respect to such action, suit or proceeding, (b) the execution of a written agreement between the Partnership and the Indemnitee reflecting that, as a result of the advancement of such expenses, the Partnership is subrogated to the Indemnitee's rights to pursue a claim for indemnification from a Third Party Indemnifier with respect to such action, suit or proceeding, and (c) receipt of an undertaking by such Indemnitee to repay such payment if the Indemnitee shall be determined to be not entitled to indemnification for such expenses pursuant to this Article 12 (whether by virtue of such Person's conduct, the receipt of a corresponding indemnification payment from a Third Party Indemnifier with respect to such matter, or otherwise); *provided*, *however*, that in such instance the Indemnitee is not defending an actual or threatened claim, action, suit or proceeding against the Indemnitees by the General Partner directly or indirectly through the Partnership (or by the Indemnitee against the Partnership and/or the General Partner).

12.2.4 Insurance.

At its election, the General Partner may cause the Partnership to purchase and maintain insurance, at the expense of the Partnership and to the extent available, for the protection of any Indemnitee or potential Indemnitee against any liability incurred in any capacity which results in such Person being an Indemnitee (provided that such Person is serving or has served in such capacity at the request of the Partnership or the General Partner), whether or not the Partnership has the power to indemnify such Person against such liability. The General Partner may purchase and maintain insurance on behalf of and at the expense of the Partnership for the protection of any officer, director, manager, employee or other agent of any other organization in which the Partnership owns an interest or of which the Partnership is a creditor against similar liabilities, whether or not the Partnership has the power to indemnify any Person against such liabilities.

12.2.5 Successors.

The foregoing right of indemnification shall inure to the benefit of the executors, administrators, personal representatives, successors or assigns of each such Indemnitee.

12.2.6 Rights to Indemnification from Other Sources.

12.2.6.1 ***Indemnification from Other Sources***

The rights to indemnification and advancement of expenses conferred in this 12.2 shall not be exclusive and shall be in addition to any rights to which any Indemnitee may otherwise be entitled or hereafter acquire under any law, statute, rule, regulation, charter document, by-law, contract or agreement. If and to the extent indemnification is available to an Indemnitee from any Third Party Indemnifier, the Indemnitee will use commercially reasonable efforts to obtain indemnification from such Third Party Indemnifier before seeking indemnification from the Partnership; provided, that, the foregoing shall not limit the advance payments of expenses provided for in 12.2.3 or otherwise prejudice the Indemnitee in any way.

12.2.6.2 ***Priority of Indemnification Sources***

The Partners hereby expressly intend that the provisions of this 12.2 shall be interpreted to reflect an ordering of liability for potentially overlapping or duplicative indemnification payments to an Indemnitee, with any applicable Third Party Indemnifiers having primary liability and the Partnership having only secondary liability. In the event the Partnership makes any indemnification payments to an Indemnitee with respect to any action, suit, or proceeding, the Partnership shall be, automatically and without the need for any further action on the part of any Person, subrogated to the Indemnitee's rights to pursue a claim for indemnification from a Third Party Indemnifier with respect to such action, suit, or proceeding.

12.2.7 Discretionary Limitation by General Partner.

Notwithstanding 12.2.1 and 12.2.3, the General Partner in its sole discretion may limit or eliminate indemnification payments that otherwise would be made by the Partnership to any Indemnitee,

other than a member of the Advisory Committee or a Limited Partner that designated any such member.

12.3 LIMITATION BY LAW.

If any Covered Person or Indemnitee or the Partnership itself is subject to any law, rule or regulation which restricts the extent to which any Person may be exculpated or indemnified by the Partnership, the exculpation provisions set forth in 12.1 and the indemnification provisions set forth in 12.2 shall be deemed to be amended, automatically and without further action by the Partners, to the minimum extent necessary to conform to such restrictions.

ARTICLE 13 - AMENDMENTS, VOTING AND CONSENTS

13.1 AMENDMENTS.

13.1.1 Consent of Partners.

Except as otherwise provided in this Agreement, the terms and provisions of this Agreement may be waived, modified, terminated or amended, during or after the term of the Partnership, with the prior written consent of the General Partner and a Majority-in-Interest of the Partners; *provided, however*, that (i) any provision of this Agreement requiring the written vote or consent of a greater percentage in interest of the Limited Partners may be waived, modified, terminated or amended only with the vote or written consent of the General Partner and such greater percentage in interest of the Limited Partners as is required by such provision, and (ii) amendments that adversely disproportionately affect certain Limited Partners require the consent of Majority in Interest of such Limited Partners. If a Feeder Fund is formed, the General Partner may permit such Feeder Fund to divide its vote into one or more separate votes to reflect votes by investors therein as limited partners or members. If a Parallel Fund is formed, then (a) the required consent for waiver, modification, termination or amendment of this Agreement and the organizational documents of the Parallel Fund or other vote or consent provided for in this Agreement and the organizational documents of the Parallel Fund shall be a Majority-in-Interest (or higher percentage if applicable) of the Fund Investors, regardless of whether a Majority-in-Interest (or higher percentage if applicable) of the Partners, taken separately, consent thereto, and (b) the General Partner shall use its reasonable efforts to cause substantially identical amendments to be made to the organizational documents of a Parallel Fund and a Feeder Fund, subject to any special regulatory, tax or other requirements applicable to a Parallel Fund, a Feeder Fund or their investors. Any provision of this Agreement or the limited partnership agreement or other organizational document of a Parallel Fund or a Feeder Fund that relates to any special regulatory, tax or other requirement and appears only in this Agreement or such other agreement or document may be amended with the consent of the General Partner and a Majority-in-Interest (or higher percentage if applicable) of the Fund Investors participating in the Partnership, the Feeder Fund or that Parallel Fund, as applicable. Notwithstanding the other provisions of this Article 13, the General Partner, without the consent of any other Partner, may amend any provisions of this Agreement under the following terms: (i) if the General Partner determines that the required amendment is merely technical (including, for example, to correct any printing or clerical errors or to clarify any ambiguity or contradiction in

the provisions of the Agreement), or if the amendment is solely intended for the purpose of compliance with any law or requirements of any governmental authority; (ii) if such changes are required to accommodate requests of Additional Limited Partners admitted to the Partnership after the Initial Closing Date and such changes do not adversely affect the other Limited Partners, or (iii) if the General Partner determines that the Limited Partners will only benefit from the amendment, or that the amendment is designated to add to the duties or obligations of the General Partner, or to surrender any right granted to it.

13.1.2 Amendments Affecting Partners' Economic Rights.

No amendment shall increase the Subscription of any Limited Partner or dilute the interest of any Limited Partner relative to the interests of the other Limited Partners in the profits or capital of the Partnership or in allocations or distributions attributable to the ownership of such interest without the prior written consent of such Limited Partner, except such dilution as may result from additional Subscriptions from the Partners or the admission of additional Limited Partners pursuant to this Agreement, and pursuant to an exercise of remedies by the Partnership under 6.3.

13.1.3 Notice of Amendments.

The General Partner shall furnish copies of any proposed amendments to all Limited Partners (or, if applicable, to the specified class or group of Limited Partners whose consent is required) and shall furnish copies of any amendments to this Agreement to all Partners, other than changes in the List of Partners to reflect the admission, withdrawal or substitution of Partners, changes in the addresses of Partners or otherwise in accordance with 3.1, and changes in the Subscriptions of Partners (in each case occurring pursuant to this Agreement), which shall not require the consent of or notice to any Limited Partner.

13.2 VOTING AND CONSENTS.

Subject to 13.1.1 with respect to a Feeder Fund or any Parallel Funds, whenever action is required by this Agreement to be taken by a specified percentage in interest of the Limited Partners, such action shall be deemed to be valid if taken upon the written vote or written consent of those Limited Partners whose Contributions represent the specified percentage of the aggregate Contributions of all Limited Partners at the time. Similarly, whenever action is required by this Agreement to be taken by a specified percentage in interest of a specified class or group of Limited Partners such action shall be deemed to be valid if taken upon the written vote or written consent of those Limited Partners of such class or group whose Contributions represent the specified percentage of the aggregate Contributions of all Limited Partners of such class or group at the time.

Further and notwithstanding anything to the contrary herein, if after the Final Closing Date, a single Limited Partner objects to an action requiring the affirmative vote of Limited Partners under this Agreement, and all other Limited Partners have unanimously consented to such action, then such action shall be deemed to have obtained the required percentage-in-interest under this Agreement for such action to be approved, and such action shall be binding on all of the Partners and/or the Parallel Fund's partners, if applicable.

ARTICLE 14 - ADMINISTRATIVE PROVISIONS

14.1 KEEPING OF ACCOUNTS AND RECORDS.

14.1.1 Accounts and Records.

At all times the General Partner shall cause to be kept proper and complete books of account, in which shall be entered fully and accurately the transactions of the Partnership. Such books of account shall be kept on the accrual method of accounting and be retained for a minimum period of five years from the date on which they were prepared. The General Partner shall also maintain: (a) an executed copy of this Agreement (and any amendments hereto) as may be in effect from time to time; (b) executed copies of any powers of attorney pursuant to which any document described in clause (a) has been executed by the Partnership; (c) the List of Partners; (d) copies of all tax returns filed by the Partnership for each of the prior five years; and (e) all financial statements of the Partnership for each of the prior three years. Such books and records shall at all times be maintained at the principal office of the Partnership.

14.2 FINANCIAL REPORTS.

14.2.1 Annual Financial Statements.

The General Partner shall transmit to each Partner, within 180 days after the close of each fiscal year, the financial statements of the Partnership for such fiscal year. Commencing with the fiscal year in which the Initial Closing Date occurs and for each fiscal year thereafter, such financial statements shall be prepared in accordance with generally accepted accounting principles or another comprehensive basis of accounting consistently applied in accordance with the terms of this Agreement, and audited by a firm of independent public accountants. For information purposes, the General Partner shall also furnish to each Partner, within 90 days after the close of each fiscal year, a brief narrative report as to the Investments and the status and operations of the Partnership.

14.2.2 Quarterly Financial Statements.

The General Partner shall furnish to each Limited Partner, within 60 days after the end of each of the first three fiscal quarters of each fiscal year of the Partnership, unaudited financial statements of the Partnership for the quarter then ended, which will include such Limited Partner's current capital account.

14.2.3 Annual Tax Information.

The General Partner shall transmit to each Partner, within 270 days after the close of each fiscal year, a report indicating such Partner's share of all items of income or gain, expense, loss or other deduction and tax credit of the Partnership for such year, as well as the status of such Partner's Capital Account as of the end of such year, and such additional information as such Partner reasonably may request to enable it to complete its tax returns or to fulfill any other reporting

requirements, provided that the General Partner can obtain such additional information without unreasonable effort or expense.

14.3 VALUATION.

14.3.1 Valuation by General Partner.

Whenever valuation of Partnership assets is required by this Agreement (but other than in connection with the financial statements of the Partnership, whereby valuations thereunder will be made in accordance with the applicable accounting rules), the General Partner shall determine the fair market value thereof in good faith in accordance with this 14.3.

14.3.2 Freely Tradable Securities.

The fair market value of any security owned by the Partnership that is a Freely Tradable Security and which is distributed by the Partnership shall be determined as of the close of trading immediately prior to the date of distribution and shall be equal to the last reported trade price of such security on such date on the exchange where it is primarily traded or, if such security is not traded on an exchange, at the last reported sale price on the relevant exchange where it is reported or, if such security is not traded on an exchange or reported on an exchange, such security shall be valued at the reported closing bid price (or average of bid prices) last quoted on such date as reported by an established quotation service for over-the-counter securities.

14.3.3 Other Assets.

The General Partner's determination of the fair market value of all other assets of the Partnership shall be based upon all relevant factors, as reasonably determined by the General Partner from time to time, which may include, without limitation: (a) the current financial position and current and historical operating results of the issuer; (b) sales prices of recent public or private transactions in the same or similar securities, including transactions on any securities exchange on which such securities are listed or in the over-the-counter market; (c) general level of interest rates; (d) recent trading volume of the security; (e) restrictions on transfer, including the Partnership's right, if any, to require registration of its securities by the issuer under the securities laws; (f) significant recent events affecting the Portfolio Company or issuer, including any pending private placement, public offering, pending mergers or acquisitions; (g) the price paid by the Partnership to acquire the asset; and (h) the percentage of the issuer's outstanding securities that is owned by the Partnership.

14.3.4 Goodwill and Intangible Assets.

In determining the fair market value of the assets of the Partnership, no allowance of any kind shall be made for goodwill or the name of the Partnership or of the General Partner, the Partnership's office records, files and statistical data or any intangible assets of the Partnership in the nature of or similar to goodwill. The Partnership's goodwill shall, as among the Partners, be deemed to have no value, and no Partner shall have any right or claim individually to the use of the Partnership's name or the goodwill thereof. At the time of the Partnership's final liquidating distribution, the

Partnership's name and any goodwill associated with it shall be automatically assigned to the General Partner or to whom the General Partner instructs, without any further action by any Partner.

14.4 PARTNERS' MEETINGS.

The General Partner may hold partners' meetings, in person or through video or call conference, on an annual basis or otherwise, in which it will, *inter alia*, present to the Limited Partners the Portfolio Companies of the Fund.

14.5 NOTICES.

Except where otherwise specifically provided in this Agreement, all notices, requests, consents, approvals and statements shall be in writing and, if properly addressed to the recipient, shall be deemed given if (a) delivered personally to the recipient; (b) mailed by first class mail (or if sent to or from outside Israel, by airmail), postage prepaid; (c) sent by electronic mail; or (d) delivered by a reputable overnight courier service. Notices shall be deemed to be properly addressed, if to the Partnership, at its principal office, and if to any Partner, if addressed to its address or electronic mail address, as applicable, as set forth in the List of Partners, or to such other address as the addressee previously may have specified by written notice given in the manner specified in this 14.5 to the Partnership, in the case of the Limited Partners, or to the Limited Partners, in the case of the Partnership or the General Partner. Notices shall be deemed received one Business Day after they are given, sent or delivered, except that notices sent by first class mail or airmail shall be deemed received three Business Days after they are mailed.

14.6 ACCOUNTING PROVISIONS.

14.6.1 Fiscal Year.

The fiscal year of the Partnership shall be the calendar year.

14.6.2 Independent Accountants.

The Partnership's independent public accountants shall be selected by the General Partner. The General Partner may change the Partnership's accountants from time to time.

14.7 TAX PROVISIONS.

14.7.1 Tax Transparency Reporting

Each Limited Partner shall provide the General Partner on a timely basis with any documents, tax certifications, financial and other information (collectively "**Tax Reporting Information**") as the General Partner may request in connection with the Partnership's compliance with any legal and tax information reporting and exchange obligations applicable to it under the laws of any applicable jurisdiction (collectively, "**Tax Reporting Obligations**"), including, without limitation, any Tax Reporting Obligations under AEOI.

The General Partner shall have the power to release, report or otherwise disclose to any relevant tax authority, including the Israeli Tax Authorities any Tax Reporting Information provided to them by a Limited Partner and any other information it holds in respect of the Limited Partner's investment in the Partnership, in connection with the Tax Reporting Obligations, including, without limitation, in relation to the identity, address, tax identification number, tax status and interest in the Partnership of the Limited Partner (and any of its direct or indirect owners or affiliates).

14.7.2 Tax Reporting Liabilities

If a Limited Partner fails to provide the General Partner with any requested Tax Reporting Information on a timely basis and such failure results, or may result, in the Partnership's inability to comply with its Tax Reporting Obligations or if the Partnership is otherwise unable to comply with its Tax Reporting Obligations as a result of the direct or indirect action (or inaction) of a Limited Partner, the General Partner may:

(a) require the compulsory withdrawal of some or all of the Limited Partner's interest without notice and may deduct or withhold from the amount payable upon such withdrawal any penalty, debt, withholding or back-up tax, costs, expenses, obligations, liabilities or other adverse consequences (collectively, "**Tax Reporting Liabilities**") imposed on the Partnership, any of its Partners and/or any of their respective directors, officers, employees, agents, managers, shareholders and/or partners as a result of such failure, action or inaction by such Limited Partner; and/or

(b) re-designate, immediately and without consent, such Limited Partner's interest as belonging to a separate class so that any Tax Reporting Liabilities may be allocated solely to and debited solely from that class.

14.7.3 Tax Reporting Consistency.

Each Limited Partner shall report the tax items attributable to its participation in the Partnership on its income tax returns in a manner consistent with the tax treatment of such items as reported to it by the Partnership.

14.8 GENERAL PROVISIONS.

14.8.1 Power of Attorney.

Each Limited Partner by execution of this Agreement constitutes and appoints the General Partner as its true and lawful representative and attorney-in-fact, with full power of substitution, in its name, place and stead, to make, execute, sign, acknowledge and deliver or file (a) all amendments of this Agreement contemplated by this Agreement including, without limitation, amendments reflecting the addition of any Partner, or any action of the Partners or the Fund Investors duly taken pursuant to this Agreement whether or not such Partner voted in favor of or otherwise approved

such action, (b) one or more subscription agreements, on behalf of such Limited Partner, between the Partnership and any other Person being admitted to the Partnership as a Limited Partner pursuant to this Agreement, in such form and such other terms and conditions as the General Partner considers, in its sole and absolute discretion, necessary or appropriate, including reference to this Agreement and its novation and agreeing and covenanting with such Person on behalf of such Limited Partner that such Limited Partner will from the effective date of such subscription agreement or agreements comply with and observe the terms of this Agreement, (c) all instruments and forms (including execution on behalf of the Partners of a Hebrew translation of this Agreement) as are required to register the Partnership and this Agreement in the Israeli Companies and Partnerships Registrar, (d) any other instrument, certificate or document required from time to time to admit a Partner, to effect the admission of the Partner's assignee as a Partner, or to reflect any action of the Partners or the Fund Investors provided for in this Agreement (including without limitation, the admission of any Partner to a Parallel Fund, a Feeder Fund or an Alternative Investment Vehicle), and (e) any other instrument, certificate or document required from time to time to effect the Transfer of a Defaulting Partner's interest; *provided, however*, that no actions shall be taken by the General Partner under the power of attorney granted pursuant to this 14.8.1 (i) in bad faith, (ii) in a manner that would subvert its obligations, including with respect to a Limited Partner, under this Agreement, or (iii) that would have any adverse effect on the limited liability of any Limited Partner. The foregoing grant of authority (1) is a special power of attorney deemed coupled with a proprietary interest in favor of the General Partner or given to secure the performance of an obligation owed to the General Partner and as such shall be irrevocable and shall survive the death or disability of a Partner that is a natural person or the merger, dissolution or other termination of the existence of a Partner that is a corporation, association, partnership, limited liability company or trust, and (2) shall survive the assignment by the Partner of the whole or any portion of its interest, except that where the assignee of the whole thereof has furnished a power of attorney, this power of attorney shall survive such assignment for the sole purpose of enabling the General Partner to execute, acknowledge and file any instrument necessary to effect any permitted admission of the assignee for the assignor as a Partner and shall thereafter terminate.

14.8.2 Execution of Additional Documents.

Each Partner hereby agrees to execute all certificates, counterparts, amendments, instruments or documents that may be required by laws of the various jurisdictions in which the Partnership conducts its activities, to conform with the laws of such jurisdictions governing limited partnerships or otherwise as will be required by any financial institution with whom the Partnership and/or any Portfolio Company works with.

14.8.3 Binding on Successors.

This Agreement shall be binding upon and shall inure to the benefit of the respective heirs, successors, permitted assigns and legal representatives of the parties hereto.

14.8.4 Waiver of Partition.

Each Partner hereby irrevocably waives any and all rights that it may have to maintain an action for partition of any of the Partnership's property.

14.8.5 Securities Law Matters.

Each Partner understands that in addition to the restrictions on transfer contained in this Agreement, it must bear the economic risks of its investment for an indefinite period because the Partnership interests have not been registered under any applicable securities laws of any jurisdiction and, therefore, may not be sold or otherwise transferred unless they are registered under applicable securities laws or an exemption from such registration is available.

14.8.6 Confidentiality.

(a) A Limited Partner's rights to access or receive any information about the Partnership or its business including, without limitation, (i) information to which a Limited Partner is provided access pursuant to 14.2, (ii) financial statements, reports and other information provided pursuant to 14.2, (iii) the offering documents for the Partnership, this Agreement, any subscription agreement and any other related agreements, and (iv) any information provided to any Limited Partner pursuant to a side letter (together, the "**Partnership Information**"), are conditioned on such Limited Partner's willingness and ability to assure that the Partnership Information will be used solely by such Limited Partner for purposes reasonably related to such Limited Partner's interest as a Limited Partner, and that such Partnership Information will not become publicly available as a result of such Limited Partner's rights to access or receive such Partnership Information.

(b) Each Limited Partner acknowledges and agrees that the Partnership Information constitutes a valuable trade secret of the Partnership and agrees to maintain any Partnership Information provided to it in the strictest confidence and not to disclose the Partnership Information to any Person other than to its officers, fiduciaries, employees, agents or consultants who have a business need to know such Partnership Information, who have been informed of the confidential nature of such Partnership Information, and who are, either by the nature of their positions or duties or pursuant to written agreement, subject to substantially equivalent restrictions with respect to the use and disclosure of the Partnership Information as are set forth in this Agreement. With respect to any Limited Partner, the obligation to maintain the Partnership Information in confidence shall not apply to any Partnership Information (i) that becomes publicly available (other than by reason of a disclosure by a Limited Partner), (ii) the disclosure of which has been consented to by the General Partner in writing, or (iii) the disclosure of which is required by a court of competent jurisdiction or other governmental authority or otherwise as required by law. Before any Limited Partner discloses Partnership Information pursuant to clause (iii), such

Limited Partner shall promptly, and in any event prior to making any such disclosure, notify the General Partner of the court order, subpoena, interrogatories, government order or other reason that requires disclosure of the Partnership Information so that the General Partner may seek a protective order or other remedy to protect the confidentiality of the Partnership Information or waive compliance with this Agreement. Such Limited Partner shall also consult with the General Partner on the advisability of taking steps to eliminate or narrow the requirement to disclose the Partnership Information and shall otherwise cooperate with the efforts of the General Partner to obtain a protective order or other remedy to protect the Partnership Information. If a protective order or other remedy cannot be obtained, such Limited Partner shall disclose only that Partnership Information that its counsel advises in writing (which writing shall also be addressed and delivered to the Partnership) that it is legally required to disclose.

(c) Each Limited Partner shall promptly notify the General Partner if it becomes aware of any reason, whether under law, regulation, policy or otherwise, that it or any of its equity holders will, or might become compelled to, use the Partnership Information other than as contemplated by 14.8.6(a) or disclose Partnership Information in violation of the confidentiality restrictions in 14.8.6(b).

(d) Notwithstanding any other provision of this Agreement, the General Partner shall have the right not to provide any Limited Partner, for such period of time as the General Partner in good faith determines to be advisable, with any Partnership Information that such Limited Partner would otherwise be entitled to receive or to have access to pursuant to this Agreement (including without limitation pursuant to 14.2) or the Ordinance if: (i) the Partnership or the General Partner is required by law or by agreement with a third party to keep such Partnership Information confidential; (ii) the General Partner in good faith believes that the disclosure of such Partnership Information to such Limited Partner is not in the best interest of the Partnership or could damage the Partnership or its business (which may include a determination by the General Partner that such Limited Partner or one or more of its equity holders is disclosing or may disclose such Partnership Information and that the potential of such disclosure by such Person is not in the best interest of the Partnership or could damage the Partnership or its business) or (iii) such Limited Partner has notified the General Partner of its election not to have access to, or to receive such Partnership Information.

(e) The Limited Partners acknowledge and agree that: (i) the Partnership or the General Partner and its partners may acquire confidential information related to third parties (*e.g*., Portfolio Companies) that pursuant to fiduciary, contractual, legal or similar obligations cannot be disclosed to the Limited

Partners; and (ii) neither the Partnership nor the General Partner and its shareholders/partners shall be in breach of any duty under this Agreement or the Ordinance in consequence of acquiring, holding or failing to disclose such information to the Limited Partners so long as such obligations were undertaken in good faith.

(f) In addition to any other remedies available at law, the Partners agree that the Partnership shall be entitled to equitable relief, including, without limitation, the right to an injunction or restraining order, as a remedy for any failure by a Limited Partner to comply with its obligations with respect to the use and disclosure of Partnership Information, as set forth in 14.8.6(a) and 14.8.6(b).

(g) For the avoidance of doubt, it is hereby clarified that each of the Partners is only entitled to receive the information (including financial statements) regarding the Partnership as is expressly set out in this Agreement or as is otherwise agreed to by the General Partner.

14.8.7 Contract Construction; Headings; Counterparts.

Whenever the context of this Agreement permits, the masculine gender shall include the feminine and neuter genders, and reference to singular or plural shall be interchangeable with the other. The invalidity or unenforceability of any one or more provisions of this Agreement shall not affect the other provisions, and this Agreement shall be construed and reformed in all respects as if any such invalid or unenforceable provision(s) were omitted or, at the direction of a court, modified in order to give effect to the intent and purposes of this Agreement. References in this Agreement to particular sections of the Ordinance or any other statute shall be deemed to refer to such sections or provisions as they may be amended after the date of this Agreement. Captions in this Agreement are for convenience only and do not define or limit any term of this Agreement. It is the intention of the parties that every covenant, term, and provision of this Agreement shall be construed simply according to its fair meaning and not strictly for or against any party (notwithstanding any rule of law requiring an Agreement to be strictly construed against the drafting party), it being understood that the parties to this Agreement are sophisticated and have had adequate opportunity and means to retain counsel to represent their interests and to otherwise negotiate the provisions of this Agreement. This Agreement or any amendment hereto may be signed in any number of counterparts, each of which when signed by the General Partner shall be an original, but all of which taken together shall constitute one agreement or amendment, as the case may be.

14.8.8 Applicable Law; Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the State of Israel.

Any disputes arising under or in connection with this Agreement may be brought and enforced solely in the courts of Tel Aviv, Israel, and the parties irrevocably submit to the exclusive

jurisdiction of such courts in respect of any such action or proceeding. The parties irrevocably waive, to the fullest extent permitted by law, any objection that they may now or hereafter have to the laying of venue of any such action or proceeding in the courts of Tel Aviv and any claim that any such action or proceeding brought in any such court has been brought in any inconvenient forum. Each party hereby irrevocably consents to the service of process of the aforementioned courts in any such action or proceeding by the mailing of copies thereof by registered or certified mail, postage prepaid, to it at its address as set forth herein.

14.8.9 Letter Agreements.

Notwithstanding anything in this Agreement to the contrary, the Partnership and/or the General Partner may, in its sole discretion, enter into a letter agreement or side letter with one or more Limited Partners providing that the terms of this Agreement are amended and/or supplemented with respect to such Limited Partner and, with respect to any such Limited Partner, the terms of such letter agreement or side letter shall be controlling, and the terms of this Agreement shall be deemed amended, modified and/or supplemented to the extent required to effectuate the provisions of such letter agreements or side letters; *provided that* any such side letter does not directly adversely affect the other Limited Partners. In addition, the terms of any letter agreement or side letter entered into with a Limited Partner shall apply *mutatis mutandis* to any Parallel Fund or Feeder Fund in which such Limited Partner is admitted or Alternative Investment Vehicle in which such Limited Partner's interest is held directly or indirectly, each to the extent relevant thereto. Other than as amended, modified and/or supplemented by such letter agreement or side letter, this Agreement shall remain in full force and effect with respect to such Limited Partner, and shall remain in full force and effect without any modification with respect to a Limited Partner who is not party to such letter agreement or side letter.

14.8.10 English Language.

This Agreement is being executed in the English language and it is the intention of the Partners to be bound thereby. A Hebrew translation of this Agreement will be submitted to the Israeli Partnerships Registrar for the purpose of registering this Agreement. The Hebrew translation of this Agreement should not be used in construing this Agreement, and no Person may rely on the Hebrew translation when dealing with the Partnership. In no event shall any translation of this Agreement (whether executed by the Partners or not) submitted to the Israeli Partnerships Registrar be considered in construing this Agreement and any such translation will not be binding. For the removal of doubt, and in the event of any ambiguity, discrepancy or conflict between the two versions, the terms and conditions of this English version of this Agreement shall prevail.

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IN WITNESS WHEREOF, the undersigned have executed this ~~Second~~Third Amended and Restated Limited Partnership Agreement of KDC Media Fund, L.P. as a deed on the day, month and year first above written.

GENERAL PARTNER:

KDCP GP KDC Media Fund Ltd.

By: _____
Name:
Title:

LIMITED PARTNERS:

~~Keshet Broadcasting~~By the General Partner, , as attorney on behalf of each Limited Partner

KDCP GP KDC Media Fund Ltd.

By: _____
Name:
Title:

~~DCPL INVESTCO LLC~~

~~By: _____~~
~~Name:~~
~~Title:~~

~~Mivtach Shamir Holdings Ltd.~~

~~By: _____~~
~~Name:~~
~~Title:~~

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APPENDIX I

DEFINITIONS

For purposes of this Agreement, the following terms shall have the meanings set forth below (such meanings to be equally applicable to both singular and plural forms of the terms so defined). Additional defined terms are set forth in the provisions of this Agreement to which they relate.

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"Additional Limited Partner"	As set forth in 3.3.1.
"Advisory Committee"	As set forth in 3.7.1.
"AEOI"	means (i) sections 1471 to 1474 of the Code and any associated legislation, regulations or guidance, and any other similar legislation, regulations or guidance enacted in any other jurisdiction which seeks to implement similar financial account information reporting and/or withholding tax regimes; (ii) the OECD Standard for Automatic Exchange of Financial Account Information in Tax Matters – the Common Reporting Standard and any associated guidance; (iii) any applicable intergovernmental agreement, treaty, regulation, guidance or standard, entered into in order to comply with, facilitate, supplement or implement the legislation, regulations, guidance or standards described in sub-paragraphs (i) and (ii); and (iv) any legislation, regulations or guidance in the State of Israel or any other applicable jurisdiction that give effect to the matters outlined in the preceding sub-paragraphs.
"Affiliate"	With respect to the Person to which it refers, a Person that directly or indirectly through one or more intermediaries, Controls or is Controlled by, or is under common Control with, such subject Person. For this purpose, a Portfolio Company shall not be deemed an Affiliate of the Partnership, the General Partner, the Managing Partner or the Management Company solely as a result of an investment made in it by the Partnership or as a result of the Managing Partner or any other officer of the General Partner and/or the Management Company serving as a director or office of such Portfolio Company.
"Agreement"	As set forth in the introductory paragraph to this Agreement.
"Alternative Investment Vehicle"	As set forth in 3.6.5(a).
"Anti-Money Laundering Laws"	As set forth in 3.3.3(a)(2).

"Business Day"	Any day other than Friday, Saturday, Sunday and any other day on which banks are authorized or required by law to be closed in Israel or in New York, U.S..
"Capital Account"	As set forth in 8.1.
"Carried Interest"	The amounts distributed to the General Partner under 7.2.1(b)(ii) for the initiation, organization and formation of the Partnership.
"Carried Interest Distributions"	As set forth in 10.5.3.
"Cause Event"	Either (i) the final non-appealable conviction by a court of competent jurisdiction of the General Partner, the Management Company or the Managing Partner for fraud or embezzlement with respect to the Partnership, or (ii) a final non-appealable verdict or judgment by a court of competent jurisdiction that the General Partner has willfully and materially breached this Agreement and committed willful misconduct in connection with the performance of its duties on behalf of the Partnership, and such breach has had a material adverse effect on the Partnership. Notwithstanding the above, it is hereby agreed that, if the position of the individual responsible for the Cause Event has been terminated, he/she is not holding any executive position in the Partnership there shall be no Cause Event.
"Code"	The United States Internal Revenue Code of 1986, as amended from time to time, or any successor statute thereto.
"Contribution"	With respect to any Partner at any time, the aggregate amount of capital contributions made to the Partnership by such Partner, adjusted in accordance with the other provisions of this Agreement, excluding the contribution of an interest-equivalent amount pursuant to 3.3.1(a)(ii) and the amount of any interest payable pursuant to 6.3.1 and 7.4.3.
"Control"	The possession, directly or indirectly, of (i) the right or power to direct, or cause the direction of, the management and policies, whether through the ownership of voting securities, by contract or otherwise, or (ii) the beneficial ownership of a majority of the voting interests.
"Commitment Period"	The period commencing on the Initial Closing Date and terminating at the earliest of (i) the permanent expiration of the Investment Period, and (ii) the date when 70% of the Partnership's Subscriptions have been invested, committed, expended or reserved either for follow-on investments or to pay the Partnership's existing or reasonably anticipated liabilities (including Partnership Expenses).
"Covered Person"	As set forth in 12.1.1.

"Default Charge"	As set forth in 6.3.3(a)(1).
"Default Rate"	As set forth in 6.3.1.
"Defaulting Partner"	As set forth in 6.3.2.
"Existing Investments"	As set forth in 2.3.
"Fees Subject to Offset"	As set forth in 5.3.2.
"Feeder Fund"	As set forth in 3.6.2.
"Final Closing Date"	Any date determined by the General Partner in its sole discretion, which shall occur no later than ~~December 31, 2020~~June 30, 2021.
"Freely Tradable Security"	Any security that satisfies the following conditions: (a) The Partnership's entire holding of such securities can be immediately sold by the Partnership to the general public without the necessity of any federal, state or local government consent, approval or filing (other than any notice filings), and without violating any contractual restrictions on transfer to which the Partnership is a party (but without regard to any notification of such sale required to be provided in connection therewith to a governmental authority or otherwise); and (b) Such securities are traded on a Public Securities Market and market quotations are readily available for such security. If only a portion of the Partnership's holdings of securities satisfies the requirements of the preceding sentence, only that portion of the Partnership's holdings of such securities shall constitute Freely Tradable Securities.
"Fund"	As set forth in 3.6.3.
"Fund Investors"	As set forth in 3.6.3.
"Fund Subscriptions"	The aggregate amount agreed to be contributed to the Fund by all Fund Investors.
"General Partner"	The entity named as General Partner in the introductory paragraph of this Agreement, and any successor General Partner.
"Indemnitee"	As set forth in 12.2.1.

"Initial Agreement"	As set forth in the introductory paragraphs of this Agreement.
"Initial Closing Date"	May 1, 2016.
"Initial Limited Partners"	As set forth in 6.1.7
"Investments"	As set forth in 2.3.
"Investment Committee"	As set forth in 3.4.3.
"Investment Period"	As set forth in 6.1.3.
"Investment Subsidiary"	As set forth in 3.6.5(h).
"Israeli Related"	An entity shall be deemed Israeli Related if (i) it is, at the time of making the investment or beforehand, managed, owned or was founded by an Israeli citizen or a resident of Israel, (ii) its principal operations are based in Israel, (iii) its principal operations are based outside of Israel but it maintains research and development and/or manufacturing facilities in Israel, (iv) one or more key persons therein are, or were, residents of the State of Israel or an Israeli citizens, (v) its technology was developed in Israel, (vi) a significant percentage of its clients or suppliers are located in Israel, and/or (vii) it has a strategic connection with one or more Israeli entities, or a business strategy requiring the use of Israeli technology or for which a nexus with Israel is integral.
"Israeli Tax Authority"	As set forth in 3.8.
"Israeli Tax Ruling"	As set forth in 3.8.
"Key Person Event"	As set forth in 6.1.4(a).
"Limited Partners"	As set forth in the introductory paragraph of this Agreement.
"List of Partners"	The list, maintained by the General Partner, setting forth the names, addresses, electronic mail addresses and Subscriptions of the Partners.
"Majority in Interest or [__%] in Interest"	Partners or Fund Investors, as applicable, whose aggregate Contributions to the Partnership or the Fund, as applicable, exceed 50% (or other specified percentage) of the aggregate Contributions of all Partners or Fund Investors, as applicable, on a cumulative basis, but excluding, for all purposes hereof: (i) any Defaulting Partners, each of

	which may not participate in any vote, and each of whose Contribution shall be disregarded for this purpose; and (ii) Non-Voting Interest.
"Management Company"	As set forth in 5.2.1.4.
"Management Fee"	As set forth in 5.2.2.1.
"Managing Partner"	Any individual designated as such by the General Partner (initially Mr. Danny Peled) for so long as such Person is actively involved in the management of the Partnership.
"Non-Voting Interest"	A limited partnership interest in the Partnership that does not entitle the holder to vote, consent or withhold consent with respect to any Partnership matter. Contributions attributable to Non-Voting Interests shall be disregarded, for purposes of 13.2, in determining both the aggregate Contributions of all Limited Partners and the aggregate Contributions of those Limited Partners voting in favor of or against a particular proposal. Except as otherwise explicitly provided in this Agreement, any interest held by any Person as a Non-Voting Interest shall be identical to all other limited partnership interests in all respects *other than* with regard to votes and consents. It is agreed that the limited partnership interest held by Keshet Braodcasting Ltd. and Mr. Danny Peled shall be deemed Non-Voting Interest with respect to any of the following maters (however not any other matters): (i) resolution in connection with the dissolution of the Partnership in accordance with 9.2(c) (liquidation of the Partnerhip due to a Cause Event) or in accordance with Section 9.2(d) (no fault liquidaton of the Partnership), (ii) consent to a Transfer of the General Partner's interest in the Partnership in accordance with 11.1, and (iii) any other matter involving an inhenrent conflict of interest between the Partnership on the one hand and Keshet Broadcasting Ltd. or Danny Peled, as applicable on the other hand (including due to Keshet Braodcasting Ltd's or Danny Peled's holdings in the General Partner).
"Ordinance"	As set forth in 2.1.
"Organizational Expenses"	All expenses attributable to the organization of the Partnership, the General Partner and the Management Company, and the sale of interests in the Partnership to the Limited Partners (including without limitation legal, consulting, travel accounting and placement agents fees).
"Parallel Fund"	As set forth in 3.6.3.
"Partners"	As set forth in the introductory paragraph of this Agreement.
"Partnership"	As set forth in 2.1.

"Partnership Expenses"	As set forth in 5.2.1.1.
"Partnership Information"	As set forth in 14.8.6(a).
"Person"	Any individual, general partnership, limited partnership, limited liability partnership, limited liability company, corporation, joint venture, trust, business trust, cooperative or association and the heirs, executors, administrators, legal representative, successors and assigns of such Person where the context so permits.
"Portfolio Company"	Any entity in which an Investment is made (or committed to be made) by the Partnership directly or through one or more intermediaries.
"Public Securities Market"	Any internationally recognized securities exchange, including but not limited to Tel Aviv Stock Exchange, London Stock Exchange and National Association of Securities Dealers Automated Quotations Stock Market.
"Related Entity"	(1) any Portfolio Company; (2) the Management Company and any other entity engaged in performing services for the Partnership or, at the Partnership's request, for any Portfolio Company; (3) any Parallel Fund, Feeder Fund, Investment Subsidiary and/or co-investment vehicle; (4) any Alternative Investment Vehicle; and (5) any Successor Funds, its management entities and its portfolio companies.
"Second Closing Date"	_____, 2019.
"Sharing Percentage"	With respect to any Partner at any point in time, a fraction, expressed as a percentage, (a) the numerator of which is the aggregate capital Contributions of such Partner and (b) the denominator of which is the aggregate amount of the capital Contributions of all of the Partners.
"Shortfall Amount"	As set forth in 10.5.3.
"Subscription"	With respect to any Partner, the total amount that such Partner has agreed to contribute to the Partnership as set forth in the List of Partners exclusive of any interest equivalent amounts pursuant to 3.3.1(a)(ii).
"Subscription Agreement"	As set forth in 3.2.1.
"Successor Fund"	As set forth in 3.6.1.
"Tax Distribution"	As set forth in 7.3.

"Tax Liability"	As set forth in 7.4.1.
"Tax Reporting Information"	As set forth in 14.7.1.
"Tax Reporting Liabilities"	As set forth in 14.7.2(a).
"Tax Reporting Obligations"	As set forth in 14.7.1.
"Temporary Investments"	As set forth in 4.3.
"Third Party Indemnifiers"	Any Person (other than the Partnership, a Parallel Fund, a Feeder Fund, an Alternative Investment Vehicle, the General Partner, the Management Company, a Successor Fund, and the general partner of a Parallel Fund, Feeder Fund and/or Successor Fund) that is legally or contractually obligated to make indemnification payments (or equivalent payments pursuant to a similar arrangement) with respect to an Indemnitee.
"Transfer"	As set forth in 11.1.
"Transfer Expenses"	As set forth in 11.2.5.
"US$"	The lawful currency of the United States of America.

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APPENDIX II

EXISTING INVESTMENTS